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Athens, May 27, 2024
Protocol No. 1484

DECISION 16/2024

The Hellenic Data Protection Authority convened, following an invitation from its President, in a session at its headquarters on May 17, 2024, May 18, 2024, and May 27, 2024, in order to examine the case referred to in the background of this document. Present at the session were the President of the Authority, Konstantinos Menoudakos, the regular members Charalampos Anthopoulos, Spyridon Vlachopoulos, and Konstantinos Lamprinoudakis, as rapporteurs, and the regular members Aikaterini Iliadou, Christos Kalloniatis, and Grigorios Tsolias. Present, without voting rights, were the expert scientists - auditors, Georgia Panagopoulou, Georgios Rousopoulos, and Charis Simeonidou, as assistants to the rapporteurs, and Irini Papageorgopoulou, an employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

I. BACKGROUND

From March 1, 2024, to April 16, 2024, the Authority received 236 complaints and requests from Greeks abroad against MEP Anna Michel Asimakopoulou for unsolicited political communication via email to their personal email addresses, which all complainants had used for their registration in the special electoral rolls for Greeks abroad in 2023 through the platform of the Ministry of Interior apodimoi.gov.gr. The email from the accused, titled "100 days before the European elections," was sent on the same day and in close temporal proximity to an informational message from the Ministry of Interior to Greeks abroad regarding postal voting. Several complainants reported, providing relevant screenshots, that when attempting to unsubscribe from the message recipient list, the information appeared that the list was named "APODIMOS." In some cases, the complainants stated that the email address to which they received the MEP's message is used exclusively for their communications with the Greek Public. At the same time, during the same period, 66 complaints were submitted to the Authority by Greeks abroad against the Ministry of Interior for violating their personal data, due to the alleged leakage of their email address from the Ministry to the aforementioned MEP.

I.A DESCRIPTION OF ACTIONS AND FINDINGS

Following the large number of complaints and inquiries submitted and having taken note of related protests published in the press and on social media, the Authority sent a letter numbered G/EX/754/04-01-2024 to Ms. Asimakopoulou. In its letter, the Authority informed the MEP that it is exercising its investigative powers under Article 58 of the GDPR and Article 13 paragraph 1 item h of Law 4624/2019 and invited her to respond within 10 days of receipt, to the following questions, providing the relevant documents: a) What was the source of the email addresses belonging to the recipient list of the message titled "100 days before the European elections," and what was the source specifically for the list of email addresses named "APODIMOS," which is mentioned during the attempt to unsubscribe by the complainants, b) What was the legal basis for processing the email addresses of the recipients of the aforementioned message, c) How were the data subjects informed about the processing of their data as mentioned above, in accordance with the principle of transparency of processing, d) Full and accurate details (proof of sending, recipient lists, etc.) must be provided from which the total number of recipients of the above message as well as the number of email addresses on the "APODIMOS" list can be determined.

On the same day, the Authority sent document no. G/EX/755/04-03-2024 to the Ministry of the Interior, informing that a multitude of complaints had been submitted regarding the sending of political communication messages to individuals registered in the special electoral rolls abroad. In the

document, it called upon the Ministry to respond within ten (10) days from the receipt of the document regarding to whom copies of the electoral rolls for abroad had been granted in the past year, specifying what information is included in the electoral rolls that have been provided, and providing any relevant documentation, including related requests.

Subsequently, the Authority sent document G/EX/825/11-03-2024 to the Ministry of the Interior, in which it additionally requested that by Thursday, 14-03-2024, the following information be submitted: the list of recipients, the method of extraction from the Ministry's systems, the platform through which the sending was made, the details of any processor acting on behalf of the Ministry, the log files, and any relevant documentation concerning: a) the sending of a letter to Greeks living abroad on February 20, 2024, with document no. 273, which refers to a related press release from the Ministry¹, b) the sending of an email message from the address ekloges-info@ypes.gr on March 1, 2024, to those registered in the special electoral rolls abroad, containing informative content regarding postal voting.

Ms. Asimakopoulou, with document no. G/IN/2344/12-03-2024, requested an extension of the deadline for submitting her views until 26-03-2024. The Authority responded to the request with document no. G/EXE/866/13-03-2024, informing her that the new deadline for her response is set for Thursday, 21-03-2024, at 2 p.m., and emphasized that no further extension can be granted. In the same document, it was highlighted that it is desirable to send the complete list of recipients with the name "APODIMOS" to whom the email was sent on 01-03-2024 by the initially set deadline, namely on 15-03-2024.

The Ministry of the Interior, with document no. G/IN/2325/12-03-2024, responded to the Authority's document no. G/EX/755/04-03-2024. In this document, the Ministry states, among other things: A) Regarding the legal framework for the information included in the electoral rolls: 1. According to the provisions of Article 3 of Law 4648/2019 (Government Gazette 205/A/2019), it is stipulated that the electoral rolls for abroad that are compiled bear the title "Special Electoral Roll for Abroad" and contain the following: a) the serial number, b) the Special Electoral Number, c) the surname, d) the first name, e) the father's name, f) the mother's name, g) the spouse's name and the father's surname (if it concerns a married woman who bears her husband's surname), h) the date and time of birth, i) the basic electoral roll (basic electoral district) where they are registered (region, municipality, electoral division), j) the full residential address, k) the email address, l) the contact telephone numbers. 2. According to Article 3 of Law 4648/2019, the provisions of Article 23 of Presidential Decree 26/2012 apply accordingly to the special electoral rolls for abroad, with the exception of items k) and l), namely the email address and the contact telephone numbers of the voters. It is clarified based on the above that the copies of the electoral rolls for abroad that are provided to the entitled parties do not include the email address and the contact telephone numbers of the voters. B) Regarding the actions of the Elections Directorate and the Directorate of Electronic Governance concerning the provision of copies of electoral rolls, the Ministry stated that according to Article 53 of Law 4648/2019, the provision of copies of electoral rolls is carried out as follows: One (1) complete set of electoral rolls in digital media without payment of a fee, as well as one (1) set of publications of the Ministry of the Interior of electoral content, are entitled to the parties represented in the Parliament or the European Parliament. Also, the above items are entitled during the pre-election period to recognized parties, according to the Parliament's Regulation, as well as those that form combinations in 2/3 of the electoral districts of the State, both basic and non-resident voters. Copies of electoral rolls may be provided during the pre-election period with the payment of a fee to the State, which is determined by the Minister of the Interior for Members of Parliament, Members of the European Parliament, candidates for Parliament, or candidates in regional and municipal elections, and only for the electoral districts, regions, or municipalities where they have been elected, as indicated by the relevant declarations of their proclamation or where they will be candidates according to their written statement. C) Regarding the provision of electoral rolls for 2023: During the pre-election periods of May – June 2023, no natural person in the capacity of

1 <https://www.ypes.gr/minyma-tis-politikis-igesias-tou-ypes-pros-tous-ellines-tou-exoterikou-gia-epistol-iki-psifo-efkairia-na-syndiamorfosome-oloi-mazi-to-paron-kai-to-mellon-tis-choras-mas/>

The candidate did not request a copy of the special electoral lists for abroad for 2023. The political parties that received electoral lists with the A' Revision 2023, including the electoral sections, from the Directorate of Electronic Governance through their representatives after 09-05-2023, also received a file with the special electoral lists for abroad. A table is provided with the applications of political parties, a table with the proof of receipt up to 13-6-2023, as well as an excerpt from the special electoral list for abroad, which the parties received (this does not include emails).

The Ministry of Interior, in its letter with protocol number Γ/ΕΙΣ/2445/15-03-2024, responded to the letter with protocol number Γ/ΕΞ/825/11-03-2024 from the Authority by sending two CDs with the list of email addresses and the emails that were sent on 29-02-2024 and 01-03-2024. This document states among other things the following: On behalf of the Ministry of Interior, an authorized official of the contractor of the project (Singular Logic) of the Integrated System for Supporting Electoral Processes (ΟΣΥΕΔ) (contract number 2/2024) undertook the following actions: a) According to Law 5083/2024 (article 37 paragraph 2), the applications of those citizens from the database of Greeks abroad 2023 that had been approved by the Ministry of Interior by 30/6/2023, were transferred to the database of postal voting applications. Excluded were the voters abroad of 2023, who were already registered on the postal platform (which operated until 19/2/2024), as there was no need for transfer. b) Created, with appropriate queries in the database, the recipient files (3 files) as detailed below. c) Finally, extracted and copied the above files to a local folder on a server of the OSYED, which is hosted in the government cloud and access to which is granted only to authorized personnel from the service. The General Secretariat for Public Sector and Digital Governance is responsible for the operation and security of the government cloud. The criteria based on which the queries in the database were made concerned a) Greek voters who submitted an application on the platform for voters abroad 2023 and were identified with taxisnet codes (file of 26,685 emails at 15:53-27/2/2024), b) Greek voters who submitted an application on the platform for voters abroad 2023, through a Diplomatic Authority and had a Tax Identification Number (file of 198 emails at 15:51 – 27/2/2024), c) Greek voters who submitted an application on the platform for voters abroad 2023, through a Diplomatic Authority and did not have a Tax Identification Number (file with 22 emails at 15:43-27/2/2024). The sending of the messages was carried out using Microsoft programs (Microsoft Office Word and Outlook). The recipient files were uploaded from the OSYED server to the personal service computer (16:48-27/2/2024) by the responsible Head of the Data Management and Interoperability Department and were subsequently sent on 29-02-2024 at 12:15 PM, to the responsible officials of the Ministry for the arrangements of the message (email) sending, the processing of the mass sending of the messages (email), the sending of text messages (sms) at a later stage, and to the heads of the relevant Elections Directorate, on behalf of which the sending of the three messages was carried out, as well as to the hierarchy up to the level of the General Director of Interior and Electronic Governance. A table with the names and positions of the recipients is provided. Subsequently, the messages were sent to the recipients of categories b and c on 29/2/2024 (at 14:22 and 14:10 respectively), and to the recipients of category a on 1/3/2024, gradually (in 5 groups of approximately 5,000) from 08:25 to 14:54. It was clarified that no special processing was performed on the said files, except for some indicative visual checks by category of recipients and the removal of all other details, except for the email. After the file was uploaded and sent via email, the usual security measures provided by the security policy were taken, and are applied by all staff of the Ministry (updated antivirus, locking computers with strong passwords, regular password changes, regular checks on the network, etc.). The files remain and have not been deleted, for future use in the immediate future and will be deleted after the completion of the electoral process. Finally, regarding the question about sending a letter to Greeks living abroad, on February 20, 2024, with protocol number: 273, the Ministry emphasizes that the recipients of the informational emails were emails of expatriate organizations, which number 2,103, and are included in the list of expatriate organizations that was received by the Ministry of Interior from the competent General Secretary of Overseas Hellenism and Public Diplomacy of the Ministry of Foreign Affairs. The contact details of expatriate organizations, the letters, and the emails were submitted by the office of the Minister, who had the relevant authority.

On 15-03-2024, Ms. Asimakopoulou sent to the Authority the details for the recipient list "ΑΠΟΔΗΜΟΙ" to whom the email titled "100 days before the European Elections" was sent on 01-03-2024. The submitted details include an export from the platform used (Mailchimp), in three.

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CSV files, with file names cleaned_members_export_e92c94dedb.csv, subscribed_members_export_e92c94dedb.csv, unsubscribed_members_export_e92c94dedb.csv. The columns of the files that are filled for all records and concern the personal data of the recipients are: E-mail, Name/First name, Surname/Last name, TAGS. The TAGS are in the form "EXPATRIATES, COUNTRY" (e.g., "EXPATRIATES", "BELGIUM"). The Authority examined these data, namely the list of e-mails submitted by Ms. Asimakopoulou and compared it with the recipient lists of the Ministry of Interior's e-mails. The total number of e-mail addresses in Ms. Asimakopoulou's lists was: 25,538, of which 23,392 were also found in the Ministry's recipient lists. The total number of e-mails in the Ministry of Interior's list was 26,905. From the examination of these initial data submitted by Ms. Asimakopoulou, it was found that names and details of the country of residence of the recipients were maintained, while there was also a significantly large number of common e-mails with the recipient lists from the 01-03-2024 informational e-mail of the Ministry of Interior, although these lists did not fully coincide.

On 15-03-2024, the resignation of the Secretary General of Local Government and Decentralization (formerly Secretary General of Interior and Organization) of the Ministry of Interior, as well as the Secretary of Expatriates of New Democracy, was made public, as they are alleged to be involved in the leak of personal data related to the case, following relevant announcements from the Government, and as a result of a related investigation that was conducted. There was no specific notification to the Authority; the Authority became aware of these developments through the media. On 18-03-2024, the Authority received notification number G/EIS/2484/18-3-2024 regarding a Personal Data Breach Incident from the Ministry of Interior. In the said notification, the start and end time of the incident is stated to be under investigation and is approximately May 2023. The time the entity became aware of the incident is stated as 15/3/2024, 14:00, and the manner in which it became aware of the incident is through the media. The type of data mentioned includes name and e-mail address. It states that an investigation is ongoing by the Ministry's internal audit service, the number of subjects is not known (only a maximum of 26,905 can be considered, which is also mentioned in the lists submitted by the Ministry to the Authority with document number G/EIS/2445/15-03-2024) and that the subjects have not yet been informed, as the internal investigation has not been completed.

Given this notification, the data from the examination of the lists of Ms. Asimakopoulou and the Ministry of Interior, as well as the public announcements of the resignations, the order number G/EXE/903/19-03-2024 for an audit was issued by the President of the Authority with the audited entity being the Ministry of Interior, in order to provide clarifications and answers and to find relevant data. The on-site audit was conducted on 20-03-2024, at the offices of the Ministry of Interior, Evangelistrias 2, 1st floor, Athens. On behalf of the Ministry, the following individuals were present: A, B, C, D, E, F, G, H, I. The audit team of the Authority consisted of Konstantinos Lamprinoudakis, regular member, and Georgia Panagopoulou and Charis Symeonidou, auditors. The on-site audit plan was followed, which included questions related to the content of the submitted notification of the breach incident as well as the search for data following the documents submitted by the Ministry and the conclusions that had emerged. Based on the notification of the incident, the attendees were asked about what is known regarding the incident, the time and manner in which it occurred, as well as how the Ministry became aware of it. The response given was that the Ministry's employees learned about the leak from the media, subsequently the same information was circulated by the Minister's Office, and after the acknowledgment of the incident, they submitted, as they were obliged, the Notification to the Authority, following a relevant indication from the Data Protection Officer, while the related investigation by the Internal Audit Unit is ongoing. During the audit, the manner in which the examination of the registration applications of expatriates in the special electoral rolls for the parliamentary elections of 2023 was conducted by authorized employees through the OSYED system was described, in order to verify

compliance with the legal requirements and to decide on the approval or rejection of the applications. The method of assigning roles in the system and the safeguards that prevent mass extraction of data were mentioned (assignment of control of specific cases to employees, only authorized persons can execute queries from which a file with mass data of voters is extracted). During the audit, data that substantiate the conclusion publicly announced by the Ministry were sought, but no evidence was submitted and no specific answer was given. The attendees reserved the right to inform the Authority accordingly when the report of the Internal Audit Unit is issued.

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The audit team received as evidence the list of overseas voters extracted on 27-02-2024 for the purpose of sending an informational email from the Ministry. The list included all the details of the voters that were extracted. It was confirmed that this list does not include the details of those who had applied for postal voting up to the day of extraction (a total of 2,027). The data contained in the lists were as follows: Application No., SURNAME, SURNAME B, FIRST NAME, FIRST NAME B, FATHER'S NAME, MOTHER'S NAME, VAT NUMBER, BIRTH DATE, ELECTION ID NUMBER, MUNICIPALITY NO., E-mail, MOBILE, AREA, CITY, STREET, NUMBER, ZIP CODE, COUNTRY, REGISTRATION NO., DATE OF REGISTRATION, EKD_ID, DhmosId, TotalId. Specifically, the following were received as evidence: P1) File resulting from the extraction of citizen data from the overseas residents database on 27 February 2024 (applications via the Greek Diplomatic Authority, who did not have a VAT NUMBER): EmigrantVoters_noAFM.xlsx, P2) File resulting from the extraction of citizen data from the overseas residents database on 27 February 2024 (applications via the Greek Diplomatic Authority, without identification via Taxis codes): MigratedEmigrantfromDA_20240227.xlsx, P3) File resulting from the extraction of citizens from the overseas residents database on 27 February 2024 (applications identified via Taxis codes): MigratedEmigrantVoters_20240227.xlsx. The recipients of the email that was circulated internally within the Ministry of Interior with the attached specific Excel files were the nine employees (as referenced in the document with registration number G/EIS/2445/15-03-2024) who had relevant duties and were hierarchically related to the subject matter. It was clarified that the extraction of the data was carried out following relevant instructions to the contractor, and the communications and related instructions were requested and received as evidence of the audit P6). During the audit, it was examined whether similar data extractions from the expatriate electoral roll (i.e., mass extractions that included the emails of the voters) had been carried out and for what purpose in the last year, and the corresponding data were submitted. Specifically, the following xls files were received as evidence: P4) File resulting from the extraction of citizen data from the overseas residents database on 24 May 2023 (registration applications approved up to and including 24 May 2023):

Expatriates_registration_applications_approved_24052023_submitted_until_17052023.xlsx, P5) File resulting from the extraction of citizen data from the overseas residents database on 8 June 2023: "Expatriates by Section for Electoral Committee Draws - June 2023 Elections.xlsx." The extractions of May and June 2023 were carried out by a competent employee of the Ministry after the contractor had sent the employee technical instructions regarding the content of the query in the database for this purpose. The relevant communications were received as evidence, P6). An email message from the audited entity to the Authority, which mentions the recipients of files P4, P5 and attaches relevant technical correspondence for the extraction: registration number G/EIS/2703/22-03-2024.

Communications with the contractor were also supplemented with the document with registration number G/EIS/2866/27-03-2024 from the Ministry. The receipt of evidence from the on-site audit was recorded in the document with registration number G/EXE/934/20-02-2024, Protocol of Receipt of Evidence. As for the method of recording accesses for the extraction of such data, the database and application logs do not record user actions but only the entry and exit from the system. To confirm and provide more detailed information regarding the logs, the document with registration number G/EIS/2970/01-04-2024 was sent from the Ministry, which forwards data mentioned by the contractor.

From the examination of the data resulting from the audit at the Ministry of Interior and subsequent communications, the following findings and conclusions emerged: The total number of emails that were in the recipient list of Ms. Asimakopoulou's campaign was 25,538. The number of registered

voters in the expatriate electoral rolls for the June 2023 elections was 25,610 (as derived from the extraction of this data on 08-06-2023 for the purpose of sending an informational email from the Ministry, as well as from the official data of registered voters in the electoral district abroad <https://ekloges.yypes.gr/current/v/home/districts/57/>). In the list of 25,610 voters, there are 25,572 different emails. Out of the 25,538 emails in Ms. Asimakopoulou's "EXPATRIATES" list, 25,462 are found in the expatriate electoral rolls for the June 2023 elections: (that is, only 76 email addresses exist in the "EXPATRIATES" list of the MEP that do not correspond to emails in the Ministry's list). While of the 25,572 different emails found in the expatriate electoral rolls of the Ministry of Interior for the June 2023 elections, 25,462 are also in Ms. Asimakopoulou's list. Therefore, only 110 email addresses are missing, which, while present in the above electoral rolls, are not found in Ms. Asimakopoulou's "EXPATRIATES" list. Of these 110 addresses, it appears that 91 belong to citizens from Turkey, a country that Ms. Asimakopoulou does not have on her list, 9 have errors in the email (invalid), and 7 are missing for unknown reasons. As

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It follows from the conclusion that Ms. Asimakopoulou had as recipients of her email practically the entirety of the emails of those citizens included in the electoral rolls of expatriates for the elections of June 2023, and for these individuals, she uploaded to the MailChimp platform, through which the emails are sent, their full name, email address, and the country in which they vote.

Ms. Asimakopoulou submitted to the Authority the document no. Γ/ΕΙΣ/2634/21-03-2024, in which she states, among other things, regarding the specific dispatch: As for the contentious list "EXPATRIATES," it came into her possession in parts, at the end of January 2024, from the Information Technology Directorate of the New Democracy party, which provided information only for the party officials and referred her to the Secretariat of Expatriates for possible updates of the officials' data. The Secretary of Expatriates, Nikos Theodoropoulos, sent, via the WhatsApp application, a file in Excel format containing approximately 25,000 full names, including father's name, mother's name, date of birth, phone number, country, city, postal and email addresses of expatriate voters from 35 countries. Upon receiving the digital list from Mr. Theodoropoulos, the MEP immediately forwarded it to her political office for the export of only the email addresses to the MailChimp digital platform, so that they could be included among the recipients of her informational campaign scheduled for March 1, 2024, titled "From Edge to Edge," concerning postal voting. This campaign included the mass sending of newsletters to expatriate Greeks, exactly 100 days before the European elections on June 9, 2024.

To investigate the above-described manner of data origin, the Authority sent to the New Democracy party the document no. Γ/ΕΞ/936/22-03-2024, in which it invited them to express their views by Friday, March 29, 2024, clarifying in particular the following: a) what is the source from which the party collected the list of Expatriates referred to by Ms. Asimakopoulou, how and at what time, b) what is the legal basis for the processing of the contact data of the Expatriates by the party, c) how it fulfills the obligation to inform the data subjects according to Articles 12-14 of the GDPR, and d) to whom these personal data have been disclosed to date. Additionally, the Authority sent the document no. Γ/ΕΞ/945/26-03-2024 for clarifications to Ms. Asimakopoulou, requesting her to provide a) the file referred to in paragraph "6. Source of data extraction of the Expatriates list" of her memorandum, in Excel format, which she received via WhatsApp from Mr. Theodoropoulos, b) information that documents the communications mentioned in the same paragraph, namely the manner and content of her request to the Information Technology Directorate of the New Democracy party as well as the manner and content of the referral to the party's Secretariat of Expatriates.

Ms. Asimakopoulou, in response to the document no. Γ/ΕΞ/945/26-3-2024, submitted her documents no. Γ/ΕΙΣ/2859/27-03-2024 and Γ/ΕΙΣ/2861/27-03-2024, the complete list "Expatriates 2023" that she had received via WhatsApp, in encrypted form, and the requested documentation of her email correspondence dated January 22, 2024, with the Information Technology Directorate of the New Democracy party (Mr. K), which sent her the attached, outdated file (of party organization presidents, members, or friends of DEEP - DIMTO New Democracy abroad), referring her to the Secretariat of Expatriates of the party for the possibility of an updated list, from which subsequently, as she stated,

the former Secretary of Expatriates of Greeks, Mr. Theodoropoulos, sent her the Expatriates 2023 list via WhatsApp, which was incorporated into the overall recipient file of the contentious message. Attached are the relevant communications with the Information Technology Directorate of the New Democracy party, from which it appears that the request dated January 22, 2024, from the MEP concerned obtaining "the updated details (phones, emails) of the Presidents of DEEP (NODA) New Democracy Abroad as well as the updated details (phones, emails) of the Presidents and members of the Local Organizations of New Democracy abroad," while in his response, Mr. K informed her that in the attached file "the lists may not be fully updated. For this reason, it would be good to also contact the Diaspora Secretariat to check for any outdated data."

The comparison of the file submitted by Ms. Asimakopoulou, namely the file that she stated was sent via WhatsApp by Mr. Theodoropoulos, with the file P5 of the Ministry of Interior showed that it is the same file, which includes the following fields: Voting Country, Voting City, Section, Country of Origin, City of Origin, Voter ID in the List, Gender, Surname, Name, Father's Name, Mother's Name, Surname (Father's), Date of Birth, Home Address, Street, Street Number, Region, Post Code, Email.

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Subsequently, a response from New Democracy was submitted to the Authority with reference number G/EIS/2989/01-04-2024, which can be summarized as follows: The Information Technology Department exclusively maintains and manages lists of registered Members of the Party, which include Party Officials both within and outside the Territory, such as the Presidents of the Regional Electoral Committee (hereinafter DEEP), former Nomarchal Executive Committee (NOD) and Municipal Local Organization (hereinafter DIM.TO) or Local Organization (hereinafter T.O.) abroad. MEP Anna-Michel Asimakopoulou requested from the Information Technology Department the updated contact details (phone numbers, e-mails) of the Presidents of DEEP (NOD) of New Democracy abroad, as well as the updated contact details (phone numbers, e-mails) of the Presidents and members of the T.O. of New Democracy abroad via an email message on January 22, 2024, at 13:41. Regarding expatriate voters, New Democracy stated that it maintains either its Members' file, which includes expatriate voters, or the file of Citizens Registered in the Electoral Rolls, without contact details, as it is communicated each time by the Ministry of Interior. In the first file, that of its Members, any email addresses are included (among the Acceptable Means of Communication). In the second file, from the Ministry of Interior, they are not. Therefore, a file of expatriate voters with their email addresses is not maintained by New Democracy under any circumstances. According to the same response, the Secretariat of Expatriates does not maintain, nor is it authorized to maintain, either of the above two files, namely neither the Members' file of the party nor the file of Citizens Registered in the Electoral Rolls. On the contrary, the Secretariat of Expatriates exclusively maintains a file of those Members of the Party who simultaneously have an administrative or other functional relationship with it, within the provisions of Article 1 of the Operating Regulations of Party Organizations of the Expatriate Hellenism in conjunction with Article 32 paragraph 3 of the current Statute of the party, namely the officials of the party organizations abroad. In relation to the memorandum of the MEP and the questions of the Data Protection Authority, it is briefly noted that New Democracy does not maintain a List of Expatriates according to the claim of the MEP, thus the answers to questions (a) to (d) of the Data Protection Authority (see the above document G/EX/936/22-03-2024) are negative. The Information Technology Department maintains, among other things, files of Members of New Democracy, as well as Citizens Registered in the Electoral Rolls of the Ministry of Interior without contact details, according to the General Policy and the Statute, and is the only competent authority for their transmission to the Party's Politicians. The Secretariat of Expatriates

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exclusively maintains a file of those Members of the Party who also maintain an administrative or functional relationship with the organizations abroad. Attached is relevant email correspondence from 22/01/2024. It is noted that the correspondence matches that submitted to the Authority and from Ms. Asimakopoulou with her document number G/EIS/2861/27-03-2024.

The Authority then sent document number G/EXE/1014/01-04-2024 to Mr. Theodoropoulos, former

Secretary of Expatriates of New Democracy, inviting him to express his views on Ms. Asimakopoulou's claim by Thursday, April 4, 2024, clarifying in particular the following: a) what was the exact request of the aforementioned MEP to the Secretariat of Expatriates, b) what is the source from which the Secretary of Expatriates obtained the aforementioned Excel file containing personal data of Expatriates, in what manner and at what time, c) whether the maintenance of the aforementioned list of Expatriates is provided for by the Secretariat of Expatriates of New Democracy, and d) to whom the said personal data have been disclosed to date. He was also asked to provide any available documentation supporting his responses, especially any communication (e-mails, WhatsApp, etc.) related to the handling of the said file.

In document number G/EIS/3147/05-04-2024, the former Secretary of Expatriates of New Democracy responded to the Authority that Ms. Asimakopoulou lawfully received from him, upon her request, on January 20, 2024, via WhatsApp, the special electoral rolls for abroad, in her institutional capacity as the Press Representative of New Democracy in the European Parliament and not as an MEP. He states that he lawfully possessed the special electoral rolls and that they had lawfully come into his possession via WhatsApp during the pre-election period of June 2023, as he was the designated representative of New Democracy in the Special Interparty Committee of Article 2 paragraph 6 of Law 4648/2019 for the voting of expatriate voters, where he had the main responsibility for examining objections from expatriate voters. The source of the electoral rolls, as far as he knows, is the Ministry of Interior, as it is responsible for maintaining them. With documents number G/EIS/3302/09-04-2024 and G/EIS/3305/09-04-2024, the former Secretary of Expatriates of New Democracy submitted screenshots from the WhatsApp application showing when and how he received the file from a certain person and how he sent the file to Ms. Asimakopoulou. From this information, it appears that the receipt of the file named

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The document titled "Overseas Citizens by Department – Parliamentary Elections June 2023.xlsx" was forwarded on 23-06-2023, and its forwarding from Mr. Theodoropoulos to Ms. Asimakopoulou occurred on 20-01-2024. Additionally, the former Secretary of Overseas Citizens of the New Democracy Party clarified that the Ministry of Interior is the exclusive source of the special electoral rolls and that these specific electoral rolls, along with the data included therein, have not been processed by him and have not been sent to any other person besides Ms. Asimakopoulou.

Furthermore, the Authority sent a document with reference number G/EXE/1009/01-04-2024 to the General Secretariat of the Prime Minister, inviting it to assist the Authority by providing all the data it has from its own research, which has been publicly announced, by Thursday, 04-04-2024. The Authority did not receive a response.

Subsequently, the Authority, after obtaining the contact details of the former Secretary General of Interior and Organization of the Ministry of Interior, Mr. Stavrianoudakis, from the Ministry of Interior (with document number G/IN/3235/08-04-2024), sent him a document with reference number G/EXE/1087/08-04-2024, inviting him to present his views to the Authority by 10-04-2024, providing all the information he has at his disposal and submitting any available documentation, given that it has been publicly announced that he resigned, taking responsibility for the data leak from the Ministry of Interior. Mr. Stavrianoudakis responded with documents numbered G/IN/3359/11-04-2024, G/IN/3360/11-04-2024, G/IN/3361/11-04-2024. He claims that with his resignation, he only assumed political responsibility, that he does not know of any evidence regarding the leak, and that he has no information regarding the involvement of any of his associates. He attached his resignation letter as well as his responses during the Ministry's internal audit process.

The Authority, by virtue of the control order with reference number G/EXE/1069/05-04-2024, with the Ministry of Interior as the controlled entity, proceeded with a new on-site audit on 08-04-2024, at the offices of the Ministry of Interior, Evangelistrias 2, 1st floor, Athens. Representatives from the Ministry present were: B, L, E, ST, Z, M, N, and X. The audit team of the Authority consisted of Konstantinos Lamprinouidakis, regular member, and Georgía Panagopoulou, Cháris Symeonídou, Georgios Rousopoulos, auditors.

The on-site audit plan was followed, which included searching for information regarding the lists circulated in relation to the work of the Special Interparty Committee as well as searching for communications concerning the leaked list of overseas citizens, and seeking documentation of the relevant data protection and security policies. The electronic communications through which the file "Overseas Citizens by Department for Electoral Commission Drawings - Parliamentary Elections June 2023.xlsx" was circulated within the Ministry on 08-06-2023 and 09-06-2023 were submitted with document number G/IN/3283/09-04-2024. Additionally, the minutes of all meetings of the Interparty Committee were submitted with document number G/IN/3301/09-04-2024. From both the discussion during the audit and based on the submitted minutes of the meetings of the Special Interparty Committee, it emerged that the electoral roll of overseas voters was not circulated in the context of exercising the Committee's responsibilities, the last meeting of which took place on 30-05-2023. The examination of objections as well as the sampling check included in the Committee's duties were conducted without examining the entirety of the electoral roll. During the discussion, it was mentioned that electoral roll data had been requested and extracted from databases at various times following a relevant order from the Secretary General of Interior and Organization. Also, in the context of the audit, it was requested that the Ministry send documentation to the Authority regarding the recording of actions in the OSYED, since it has been stated that significant events are recorded that the SQL server has pre-selected, such as backups, deadlock victim processes, and failures, as well as failed login attempts. Regarding successful login attempts, these are recorded in the logs of the firewalls that protect the OSYED system and are maintained at the GGPSDD. Additionally, the security policies and plans concerning the OSYED and the election-related systems were requested, as well as data protection policies, any impact assessments, and the activity records of the Ministry concerning the OSYED and the election-related systems. Furthermore, information regarding the implementation of Article 8 of Joint Ministerial Decision 12284/2024 (Government Gazette 1037/B/12-02-2024) (processing of personal data – postal voting) was requested, as well as the applicable contracts with processors for the OSYED and the election-related systems. The Ministry submitted the relevant documents to the Authority with documents numbered G/IN/3285/09-04-2024, G/IN/3286/09-04-2024, and G/IN/3287/09-04-2024.

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The Authority, pursuant to the control order no. Γ/ΕΞΕ/1069/05-04-2024 issued by its President, conducted a new on-site inspection on 10-04-2024, at the offices of the Ministry of Interior, Evangelistrias 2, 1st floor, Athens. On behalf of the Ministry, the following individuals were present: E, D, and O. The inspection team of the Authority consisted of Konstantinos Lamprinouidakis, regular member, and Georgía Panagopoulou, Cháris Symeonídou, inspectors.

The on-site inspection plan was followed, which included seeking clarifications and confirmation regarding the content received from the parties on CD on 13-6-2023, according to the initial response no. Γ/ΕΙΣ/2325/12-03-2024 from the Ministry of Interior, specifically the content of the xls file with the data of overseas voters. The inspection team, through on-site investigation on the computer of the responsible employee, found that the list provided to the parties on CD did not contain the e-mails or any other additional unanticipated personal data of overseas voters. The list is automatically extracted from the OSYED application to be included in the lists provided to the parties through the prescribed procedure. The metadata of the file was also checked, and it was found that the file had not been modified.

The Authority, on 11-04-2024, pursuant to the control order no. Γ/ΕΞΕ/1068/05-04-2024 issued by its President, conducted an on-site inspection at the offices of the New Democracy party, Piraeus 62, Moschato. The inspection team of the Authority consisted of Konstantinos Lamprinouidakis, regular member, and Georgía Panagopoulou, Cháris Symeonídou, Georgios Rousopoulos, inspectors. On behalf of New Democracy, the following individuals were present: P, R, S, T, and Y.

The on-site inspection plan was followed, which included seeking information from the internal

investigation at New Democracy that revealed the responsibility of the Secretary of Overseas Affairs and how the information publicly announced was confirmed. It also included a description of the role and duties of the Secretariat for Diaspora/Overseas Affairs of the party and whether it includes the maintenance of personal data records. The relevant excerpt from the party's activity file was requested, which was submitted with document no. Γ/ΕΙΣ/3554/16-04-2024. New Democracy had no evidence to present regarding the responsibility of the Secretary of Overseas Affairs. During the inspection, the Authority was submitted the resignation letter of the Secretary in which he states that he is innocent and resigns because he was asked to do so. According to the responses provided to the Authority during the inspection, the responsibilities of the Secretariat for Overseas Affairs include processing personal data of party officials involved in overseas organizations. Due to this responsibility, Ms. Asimakopoulou was referred to the Secretary of Overseas Affairs during her communication with the IT Department on 22-01-2024, in order to provide her with any more recent updated information about these officials. In the CRM system (which includes the database) of New Democracy, the details of party members are maintained, as they are cross-checked against the official electoral lists. The e-mails of voters are not included in these, as was found during the inspection. Access to this database is limited to specific officials of the IT Department. The mailbox of the resigned Secretary of Overseas Affairs (diaspora@nd.gr and onomasitiko@nd.gr) was also investigated through the e-mail server: the last access to it was made on 24-01-2024, and the number of e-mails was minimal, indicating that these accounts were not frequently used. Any communications with Ms. Asimakopoulou and the Ministry of Interior were sought but nothing relevant to the case was found. The mailboxes support@nd.gr, ...@nd.gr were also investigated for any additional communications with Ms. Asimakopoulou, with negative results.

Regarding the content of the telephone communication with Ms. Asimakopoulou mentioned in the e-mail attached to the memorandum of New Democracy, it was clarified during the inspection that Ms. Asimakopoulou asked how she could obtain more e-mail addresses, as many of the e-mails were not filled in the list of officials sent to her. Thus, she was referred to the Secretary of Overseas Affairs for any updated information. The conversation took place with Mr. S.

The log files on the e-mail server of New Democracy are maintained, through execution, for a period of 60 days.

The Secretary of Overseas Affairs connected to the New Democracy network via his own laptop on a network with restricted access. Beyond his e-mail, he did not have access to other systems of New Democracy. This practice is in accordance with the overall policy of proper use of personal devices ("Bring your own device" – BYOD), which is included in the "Cybersecurity Policy," submitted with document no. Γ/ΕΙΣ/3554/16-04-2024.

During the discussion, representatives of New Democracy emphasized that, given that the alleged sending of the list by the resigned Secretary of Overseas Affairs to the MEP was done via WhatsApp and that this list is not maintained by...

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to the New Democracy party, and given that the Secretary of Overseas Greeks had exclusive responsibility for his laptop and the data stored on it, no liability arises for New Democracy regarding the maintenance of the list sent to Ms. Asimakopoulou. In response to a related question, it was mentioned that the resigned Secretary of Overseas Greeks was not asked to return files, his laptop was not checked for any files belonging to New Democracy, and no request was made for the deletion/destruction of files containing personal data. It is likely that the updated files of the overseas organizations' officials were stored on his laptop, but these files are no longer available to ND. This fact does not appear to have been recorded as an incident of personal data breach.

With document G/EXE/1078/08-04-2024, the Authority forwarded to Ms. Asimakopoulou 230 complaints and requests from citizens submitted between 01-03-2024 and 28-03-2024 regarding the sending of an email titled "100 days before the European elections" on 01-03-2024, for her opinions. In her response document G/EIS/3418/12-04-2024, Ms. Asimakopoulou stated that she had responded

to those complainants who had already contacted her with a related email of protest and provided the text of that response, which indicated that it could be forwarded by the Authority at its discretion to the other complainants. Additionally, with document G/EXE/1124/11-04-2024, the Authority requested Ms. Asimakopoulou to submit the original Excel file she received from the former Secretary of Overseas Greeks of ND via WhatsApp, in order to check its metadata, as she was instructed. Ms.

Asimakopoulou submitted the file with reference number G/EIS/3531/16-04-2023. From the metadata check, it appears that the creation date (08/06/2023) and the author match the details of the file "Overseas Greeks by Department for Electoral Draws - Bulgarian Elections June 2023.xlsx" (P5). The file has a last modification date of 22/01/2024 at 10:25, by the user "annamisel asimakopoulou".

With document G/EXE/1076/08-04-2024, the Authority forwarded to the Ministry of Interior 54 complaints and requests from citizens submitted between 1/3/2024 and 29/3/2024 regarding the leakage of data included in the special electoral lists for abroad, for their opinions.

At the same time, with its document G/EIS/3549/16-04-2024, the Ministry forwarded to the Authority the email dated 19-04-2023 that was identified during the internal audit and concerns the internal circulation of an Excel file containing the complete details of 22,817 overseas Greeks up to 10-04-2023, which, as stated by the Ministry, had been extracted without creating a query ("it was the entirety of the database regardless of criteria). According to this message, the file does not include the phone numbers of the overseas Greeks as an element.

Finally, regarding the manner of satisfying exercised rights under the GDPR, it is noted that: Since early April 2024, several complaints have been submitted to the Authority by overseas Greeks for violation of the right of access and/or deletion by the aforementioned MEP, given that in their related requests, Ms. Asimakopoulou had responded by referring to the type of data included in the list that came into her possession without providing a copy of the data concerning each applicant as a data subject. With the supplementary complaint document G/EIS/3534/16-04-2024 against the Ministry of Interior, the Authority was notified of the Ministry's response dated 11/4/2024 to a request for access submitted by the complainant on 14/3/2024 to the Elections Directorate of the Ministry of Interior. From this response, it appears that general information is provided regarding the data processing carried out by the Ministry in the context of compiling the electoral lists and for the purpose of organizing the exercise of the right to vote, without providing a copy of the specific data held by the Ministry concerning the applicant.

I.B CALL FOR HEARING - MEMORANDA

Following the above, the Authority, with calls G/EXE/1205/22-04-2024, G/EXE/1207/22-04-2024, G/EXE/1214/22-04-2024, G/EXE/1209/22-04-2024, and G/EXE/1206/22-04-2024 respectively, summoned the involved parties: Anna-Michel Asimakopoulou, Ministry of Interior, New Democracy, Nikos Theodoropoulos, and Michalis Stavrianoudakis to a hearing before the Plenary of the Authority at its headquarters on 29/4/2024, in order to present their views on the case, simultaneously notifying them of the above.

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full description of actions and findings of the Authority. The following individuals were present at the meeting, who had been notified by those summoned to the Authority:

- 1) Anna Michelle Asimakopoulou, with her attorney, Leonidas Kanellos (A.M. ...)
- 2) On behalf of the New Democracy party, the lawyers Panagiota Moschandreou (A.M. ...) and Vasileios Gakopoulos (A.M. ...) and Ioannis Papaioannou, Deputy Director of Information Technology
- 3) Nikos Theodoropoulos, with his attorneys Leonidas Kotsalis (A.M. ...), Alexis Stefanakis (A.M. ...), Vasileios Psycha (A.M. ...), Roussa Tsoukalas (A.M. ...), Konstantinos Kotsalis (A.M. ...), and Athanasios Theodoropoulos (A.M. ...)
- 4) On behalf of Michalis Stavrianoudakis, his attorney Polyxeni Bovolou (A.M. ...)
- 5) Theodoros Oikonomou, Head of the General Directorate of Internal and Electronic Governance of the Ministry of Interior, Panagiotis Skiadas, Head of the Elections Directorate of the Ministry of Interior, Angelos, Head of the Electronic Governance Directorate of the Ministry of Interior, Kleopatra Sarantakou, Head of the Internal Audit Unit of the Ministry of Interior, Stamatios Theocharis, Data

Protection Officer at the Ministry of Interior, and Ioannis Bakopoulos, Legal Advisor to the State Legal Council at the Ministry of Interior.

At the beginning of the meeting, Nikos Theodoropoulos submitted a request for postponement of the meeting in order to review the report dated 26/4/2024 from the Internal Audit Unit of the Ministry of Interior, which had been forwarded to the Authority (with protocol number G/EIS/3889/26-04-2024), arguing that all parts of the case are interconnected and access to the report is necessary for his defense. The same request was submitted on behalf of Michalis Stavrianoudakis and by Theodoros Oikonomou, who also requested access to the report from the Authority. Ms. Asimakopoulou opposed the request for postponement, arguing that the Ministry's report is not relevant to the case, while the Head of the Internal Audit Unit, Ms. Sarantakou, pointed out that the findings of the Internal Audit are legally communicated only to the Minister of Interior, the Court of Auditors, and the National Transparency Authority. Following a brief recess, the Authority rejected the aforementioned requests for postponement and access to the report of the Internal Audit Unit of the Ministry, submitted by Nikos Theodoropoulos and Michalis Stavrianoudakis, because, according to Article 26 of the Operating Regulation of the Internal Audit Unit of the Ministry of Interior (Y.A. 16786 FEK B' 5662/7.11.2022), which states that "1. The results of the Audit (audit report) are submitted in writing to the Minister and are communicated to the Head of the relevant organizational unit to which the conducted work pertains. 2. The Reports are communicated without delay to the Court of Auditors in accordance with paragraph 3 of Article 71 of Law 4820/2021 and are communicated to the National Transparency Authority in accordance with Article 83 of Law 4622/2019 and Article 30 of the decision E.A.D. no. 11699/2020 (B' 1991/2020). The Reports may be communicated, in addition to the aforementioned, to other services or to other entities outside the Ministry, only after the approval of the Minister of Interior," those interested in obtaining access to it must submit their request to the Ministry of Interior, while the hearing process takes place based on the above Description of actions and findings of the Authority, which has already been communicated to those summoned with their notice for the hearing, and not based on the aforementioned report of the Ministry of Interior. Furthermore, the Authority rejected the above request of Theodoros Oikonomou, who has not been summoned to be examined as a data processor or as a processor, primarily because it was not submitted in his capacity as a representative of the Ministry of Interior, which was summoned to the hearing, but individually.

During the meeting, Ms. Asimakopoulou reiterated the claims she had made in her memorandum with protocol number G/EIS/2634/21-03-2024, emphasizing that she complies with the GDPR regarding communication policy and that due to her long-standing activity since 2007, she has created a database of friends and recipients of her newsletter, consisting of approximately 45,000 recipients. Regarding the database she received from the former Secretary of Overseas Greeks of New Democracy, Mr. Theodoropoulos, Ms. Asimakopoulou clarified that, having been informed about the establishment of postal voting, she decided to contact her party, New Democracy, requesting information on overseas members of the party, and in this context, her office employee, F, contacted the IT Directorate of New Democracy by phone on January 18 or 19, 2024. In this phone call, Mr. K from the IT Directorate of New Democracy stated that her request should also be submitted in writing and would be answered, which was done on Monday, January 22, 2024, while at the same time he referred her to the Secretary of Overseas Greeks for possibly updated information. Meanwhile, for the sake of expediting the process,

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Whereas he had known Mr. Theodoropoulos since 2018 and they had collaborated in the past, he found it simpler to communicate directly with him, which he did, and met with him on 20/1/2024 in Athens to discuss the campaign in light of the upcoming European elections. On the afternoon of the same day, Mr. Theodoropoulos forwarded the Excel file to her via WhatsApp.

Mr. Theodoropoulos emphasized during the hearing that what Ms. Asimakopoulou requested from him were the electoral rolls for abroad, and the purpose, as stated to him, was to examine from a strategic perspective which countries she would visit as part of her election campaign, as well as to assist Greeks abroad in registering for postal voting. He pointed out that Ms. Asimakopoulou had been

appointed as the spokesperson for the ND's European Group. He mentioned that after 20/1/2024, Ms. Asimakopoulou did not contact him again. Regarding the electoral rolls, he clarified that he had not received them from the Ministry of the Interior but had requested and received them on 23/6/2023 from "a competent party official of ND regarding the electoral rolls," whom he did not name but reserved the right to identify in his memorandum, clarifying, however, that it was "an official from the Secretariat, who had full authority to access the electoral rolls maintained by the party." The reason he requested the lists one day before the polls opened for abroad was to enable demographic analysis of the electorate (by gender/age/city), given that there are no exit polls abroad, while he was unaware that the email addresses of the voters were included in this file. Therefore, he argued that his role was merely procedural, as he initially received the electoral rolls for abroad from the competent services of ND, which he believed the party lawfully possessed, and he was a recipient as an Instrument of it, due to his duties as Secretary of Overseas Greeks and based on the party's Statute. Moreover, he had also been appointed as a member of the Special Interparty Committee of Article 2 par. 6 of Law 4648/2019. Subsequently, without making any further processing, he forwarded the electoral rolls for abroad to an experienced lawyer, a Member of the European Parliament, and a representative of the ND's European Group, whom he had met as the party's digital sector head and considered an expert on data protection issues. Regarding the method of communication (WhatsApp), Mr. Theodoropoulos clarified that the ND's Policy does not prohibit the use of such means among the party's officials, but only in their communications with third parties. In response to a related question from a member of the Authority, he stated that he was absolutely certain that the file he received was the electoral rolls for abroad and that they were the only ones he received in anticipation of the parliamentary elections on 25/6/2023, while he had also received part of the rolls before the parliamentary elections on 21/5/2023, to facilitate voters who would be in Lithuania due to a sporting event. He mentioned that his role, as Secretary of Overseas Greeks, was to assist the party in its relations with expatriates, and in this context, he had sent many times the details of members registering with the party at events abroad or through the website diaspora.nd.gr, forwarded the consent forms, and before the parliamentary elections of 2023, provided support from his personal mobile phone and email to expatriates wishing to register to vote. The reason he was asked to resign was, as he stated, to protect postal voting.

The New Democracy party, through its representatives, reiterated the claims mentioned in its memorandum G/EIS/2989/01-04-2024, while reserving its position regarding the telephone communication mentioned by Ms. Asimakopoulou with the IT Department before 22/1/2024. In response to a related question, it was clarified on behalf of ND that if Mr. Theodoropoulos had requested the list of expatriates from the party, he would have received a negative response, as the electoral list maintained by the party is not transmitted but is used only for updating the details of the party's members. ND also clarified that no specific instructions had been given to the Secretary of Overseas Greeks regarding the processing of personal data, but that the party's Policy applies. In response to a question about how the party's bodies are informed about data processing and whether there are relevant contracts, ND's lawyer reserved the right to respond in the memorandum.

Michalis Stavrianoudakis, through his attorney, stated that he does not know any details regarding the alleged leak of the expatriate file from the Ministry of the Interior.

The attending Councilor of the State Legal Council stated during the session that he does not have a mandate to represent the Ministry and suggested that questions be directed to the also present Head of the Internal Audit Unit. After a brief recess, the Authority, having taken into account Article 7 of Law 4795/2021, according to which "1. The function of internal audit is independent. The functional independence is ensured by the organizational subordination of the Internal Audit Unit directly to the head of the entity, as well as by the establishment and operation of the Audit Committee. 2. Internal Auditors are not involved in any way in the administration of the entity.

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"nor do they undertake operational duties related to it," decided that the position of the Head of the MEA does not allow her to represent the Ministry of Interior as the data controller before the Authority. Therefore, no questions were directed to the aforementioned as a representative of the Ministry.

After the conclusion of the meeting, all summoned parties were given a deadline to submit a memorandum and submitted it in a timely manner: a) Anna Michelle Asimakopoulou submitted memorandum G/EIS/4155/10-05-2024, b) the Ministry of Interior submitted memorandum G/EIS/4190/13-05-2024, c) New Democracy submitted memorandum G/EIS/4191/13-05-2024, d) Nikos Theodoropoulos submitted memorandum G/EIS/4199/13-05-2024, and e) Michalis Stavrianoudakis submitted memorandum G/EIS/4203/13-05-2024.

Anna Michelle Asimakopoulou, in her memorandum G/EIS/4155/10-05-2024, initially emphasizes that the outcome of the case is very important for her, as it not only affects her certain re-election to the European Parliament but has also created many disputes at both political and criminal levels, and generally reiterates the claims she made during the hearing, clarifying in particular the following:

- That she turned to party sources in order to support her communication campaign for the European elections and thus on 18/1/2024 had a telephone communication with the IT Department of New Democracy, during which she was orally referred to the Secretary of the Diaspora even before her official communication via email on 22/1/2024.

- That following the oral instructions from the IT Department of New Democracy, she communicated by phone and then in person with Mr. Theodoropoulos, where, during a working lunch on Saturday, January 20, 2024, in Athens, she presented to him the content of the communication from her political office with the party, as well as her intention to communicate with expatriate Greeks regarding postal voting, also promoting her candidacy for the European elections in June 2024, and the Secretary of the Diaspora informed her that he had enriched, secure, and updated contact details for expatriates, which he had lawfully collected in the context of his party position and institutional role. Specifically, he reminded her that during the pre-election period of June 2023, he was officially designated as the representative of New Democracy in the Special Interparty Committee for the voting of overseas voters with the responsibility of examining candidates' objections. At the same time, as also indicated by a relevant press release from New Democracy, he was tasked with receiving calls on his mobile phone, along with five other party officials, who operated an informal "call center" of New Democracy, aimed at informing, guiding, and facilitating overseas voters to gather the necessary documentation to register in the special electoral rolls of the Ministry of Interior for the year 2023. Through this action, he had gathered complete contact details of interested parties, such as names, patronymics, country, city, and residential addresses, phone numbers, and emails, which he gladly offered to send to Ms. Asimakopoulou for use in her informational campaign as a Member of the European Parliament.

- That during their meeting, she asked him for the contact details of expatriates, to know in which countries there was a greater concentration of expatriate Greeks, so that she could prioritize traveling to those places, promoting her candidacy for the European elections.

- That she had no reason to doubt his good intentions or his statements, as she was aware of his activities and the fact that his institutional position as Secretary of the Diaspora of New Democracy included regular contacts with expatriate Greek organizations (over 2,100 worldwide based on official data), frequent travels, and stays for several days each month abroad, to organize events promoting the party among the Greek diaspora. Additionally, she states that if she had the slightest suspicion that this data was not legally secure and "certified" under GDPR, she had no reason to use it, risking her certain re-election.

- That Mr. Theodoropoulos sent her the file via WhatsApp, as he stated during the hearing, within the framework of their existing trust relationship and their party communication, due to her status as a Member of the European Parliament and spokesperson for New Democracy in the European Parliament. Ms. Asimakopoulou pointed out that she is the spokesperson for the European group of New Democracy, without this status granting her more rights than other candidates, and that her receipt of the file on 20.1.2024, that is, before the official response from the IT Department of the party on 22.1.2024, is completely irrelevant, since whenever she received it, she did so based on party instructions and from a source that was duly indicated to her.

- That the use of personal devices and applications, such as WhatsApp, by party officials is explicitly provided for by the party's cybersecurity policy, according to security guidelines ("Bring Your Own Device – BYOD"), therefore the response email from the IT Department of New Democracy to her office

on 22.1.2024, recommending that she contact the Secretary of the Diaspora, renders the claims of New Democracy baseless, that the only competent service for sending data is the...

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The Information Technology Department of the Party and the sole means of transmitting information is email, since if this were the case, the Information Technology Department would request the updated information directly from the Secretary of Overseas Greeks, so that it could be provided in full through the official channel and would not refer “improperly” to him.

- Regarding the legality of her political communication via email with all Greeks abroad, Ms.

Asimakopoulou reiterates the claims mentioned in her initial memorandum, emphasizing that there is no specific regulatory framework for political communication and that the relevant gap is not covered by the Guidelines 1/2023 of the Authority, and that in this case she reasonably considered that she had a superior legitimate interest in informing unknown voters about postal voting, as she was unable to know what the “legitimate expectations” of the unknown recipients of the message were and believed that they would not be harmed by a single informational and not commercial message from a prominent politician, as well as that the use of the email of expatriates serves the public interest for broad participation in the electoral process and for the election of the most suitable candidates to the European Parliament, a purpose entirely compatible with the initial purpose of data collection and therefore, in her opinion, the processing she undertook was not illegal.

- Finally, invoking relevant case law from the CJEU and other supervisory Authorities of the EU, she states that any imposition of a fine against her would open a new round of unfair political and economic exploitation of the case and requests the prompt issuance of a decision without the imposition of sanctions.

Nikos Theodoropoulos, in his G/EIS/4199/13-05-2024 memorandum, initially invokes Decision 26/2006 of the Authority and argues that electoral rolls are not used exclusively during the electoral period but are necessary for the unobstructed democratic functioning of parties, which by definition have a legitimate interest in requesting electoral rolls regardless of the time, in order to be able to fulfill their constitutionally guaranteed purposes, and for this reason they can use them, as specifically defined in the Privacy Policy of each party. Indicative purposes include the analysis of polling findings (which are used as guidelines for the electoral quota that exists in each electoral district), the registration of new members in party lists, and generally the political communication of each party in the electoral districts. He also points out that Article 23 of Presidential Decree 26/2012 regulates exclusively and only the way candidates and parties communicate during the pre-election period and not during a non-pre-election period, meaning that this article does not regulate the way of continuous informing citizens about the political positions and actions of the party.

Furthermore, Mr. Theodoropoulos argues that both the party and he, as Secretary of Overseas Greeks and thus an Organ of the Party since 2019, had full legitimacy to access the special electoral rolls of overseas voters. To this end, he invokes: a) the Operating Regulation of organizations of the expatriate Hellenism of New Democracy, which was updated by the Political Committee of New Democracy in November 2022, according to which, among other things, the responsibility of the Secretariat of Hellenism of the Diaspora includes “the preparation and support of the participation of Overseas Voters in the National Elections and the European Elections,” which entails his responsibility as Head of the Secretariat of Overseas Greeks of New Democracy, which was not limited to Party members but to all Overseas Voters, b) the Privacy Policy of New Democracy, Article 6.1 of which states that “NEW DEMOCRACY generally does not disclose or transmit Personal Data to third parties. Recipients of your Personal Data, unless otherwise specified in the corresponding Processing Policy, are the Organs of the Party, as responsible for the organization, management, operation, and fulfillment of the purpose arising from the Statute of NEW DEMOCRACY” and c) Article 33 of the party's Statute, according to which “the Secretariats are Organs of the Central Administration of the Party, with responsibility for the organizational and functional development, direction, and coordination of their areas of action.” Based on the above, he argues that he does not constitute an independent data processor, that the data controller is exclusively New Democracy, which, as a party, determines the purposes and means of processing, nor does he constitute an executor of the processing, but an

internal organ of the party. He states that by virtue of his position as a party Organ, he had lawful access to the data of the electoral rolls and therefore cannot be considered a third party regarding the data contained therein. On the contrary, always by virtue of his position, he is considered a person who, under the direct supervision of New Democracy, as the data controller, was authorized to process the personal data contained in the electoral rolls.

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Regarding the use of the WhatsApp application, it is emphasized once again that communication with third parties is considered personal communication as long as it is not conducted through the party's domains (e-mail at @nd.gr). However, his communication via the WhatsApp application, which concerned the electoral lists, was conducted only with party organs. Therefore, neither of the two is considered a third party, and the communication is regarded as entirely internal to the party, where according to the New Democracy's Privacy Policy, no framework or limitation is defined regarding the mode of communication. For this reason, he was not surprised by the sending of the lists via WhatsApp by the responsible party official, nor did Ms. Asimakopoulou express any reservations regarding the mode of communication with him. Regarding the receipt of the electoral lists, Mr. Theodoropoulos states that he indeed requested, as he was obliged to do, from the "responsible party official" the Electoral Lists of the Diaspora in order for the Party's Diaspora Secretariat to conduct an analysis of the electoral result afterwards (a specific form of political communication). He received the special electoral lists on June 23 at 5:05 PM, just a few hours before the polls opened abroad (June 24 at 00:00 Greek time) and while there was already a legal prohibition on political communication. The electoral lists were sent to him as an Excel file, and after the elections and the publication of the results, only the gender, age, and city were used by the Diaspora Secretariat, so that New Democracy could know how citizens voted based on the aforementioned comparative data since no opinion polls are conducted abroad on election day (exit polls), and therefore it would be impossible to draw substantial political conclusions in a historic but also unprecedented democratic process. With the memorandum, the message through which Mr. Theodoropoulos received the relevant Excel file is submitted, from a certain Greek mobile phone number, of which he has concealed 5 digits from the last 6, while the penultimate digit is visible along with small portions of some other digits. Mr. Theodoropoulos claims that the visible penultimate digit does not correspond, as far as he knows, to associates of the former General Secretary of the Ministry of Interior, to whom the special electoral lists were circulated by the Elections Directorate, according to the Press Release of the Ministry of Interior dated April 26, 2024.

Regarding the transmission of the above file to Ms. Asimakopoulou, Mr. Theodoropoulos states the following: In the context of promoting postal voting to expatriate Greeks, both New Democracy and specifically the Diaspora Secretariat had planned political actions in countries and cities abroad with a strong Greek presence, in order to organize events aimed at informing and activating expatriate Greeks regarding Postal Voting. Moreover, the Secretary of the Diaspora had organized other similar events with government and party officials without using any data from the electoral lists, although he had them in his possession since June 23, 2023. At the same time, within the framework of New Democracy's political choice to promote postal voting, Ms. Anna-Michel Asimakopoulou, as the spokesperson for the New Democracy's European Group (that is, as a party organ, since the spokesperson for the European Group is appointed directly by the party president, thus constituting a party organ), decided on her own initiative to assist in this effort. In the context of the campaign to promote postal voting to expatriate Greeks, Ms. Asimakopoulou approached Mr. Theodoropoulos and asked to meet and exchange views on the matter on January 20, 2023. As emphasized by the former Secretary of the Diaspora, the purpose of the meeting was the political communication of the Party, as specifically provided in the General Political Privacy Policy, for the promotion of postal voting, which was to be voted on a few days later. During the meeting, Ms. Asimakopoulou asked him for the special electoral lists, in order to draw political conclusions based on the demographic data of expatriate voters, so as to promote postal voting, and in this context, Mr. Theodoropoulos provided her with the special electoral lists a few hours later. He points out that he could not imagine that the said lists would become the subject of any other processing beyond the purpose that Ms. Asimakopoulou had

mentioned to him, given her excellent knowledge of GDPR, and that he could not refuse due to her institutional role (Spokesperson for the New Democracy's European Group in the European Parliament), as the legislation explicitly states that representatives of parties in the Parliament and the European Parliament can have access to the electoral lists, while Ms. Asimakopoulou had repeatedly received the electoral lists institutionally (in a non-election period) from the Ministry of Interior, as she stated before the Authority on April 29, 2024. Finally, Mr. Theodoropoulos argues that they were never previously concerned with the existence of email addresses within the special electoral lists abroad since it was the first time that emails were included in electoral lists, based on Article 3 of Law 4648/2019, which in paragraph 2 simply stipulated a reservation without specific provision (in contrast to the explicit prohibition now included in Article 7 paragraph 2 of Law 5083/2024 for postal voting).

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Therefore, the issue of emails in the electoral rolls for the party organs was something unprecedented. He states that as New Democracy, and personally, he was not interested in seeking any personal contact details of individuals (e.g., declared residence address), as there was no intention for ND to engage in direct political communication with them, not even through postal dispatch since such action is only permitted during the pre-election period, and the purpose of using them in this case was the analysis of the electoral results. Additionally, Mr. Theodoropoulos submitted a sworn affidavit regarding the manner in which the electoral rolls came into his possession with document no. G/EIS/4499/22-05-2024.

New Democracy, in its memorandum G/EIS/4191/13-05-2024, refers verbatim to its document of opinions dated 29/3/2024, particularly emphasizing the provisions in its Statute and the published Personal Data Processing Policy of the party, clarifying that the technical measures it implements exclude the recording and retention of a file in the party's database by any Secretary. The entities referred to as data recipients (of Article 43) do not maintain a membership record but can only, for the performance of their sector's duties, receive, upon request to the IT Department, as the sole competent authority for the maintenance, processing, and transmission of members' data, either the entire membership file or part of it for a specific purpose. ND emphasizes the distinction between the concept of members and that of party officials and stresses that the IT Department sent, following a telephone communication (22/1/2024) between Mr. S, from the IT Department of ND, and the collaborator of Ms. Asimakopoulou's office, on the same day, a file of party officials abroad and referred it to the Diaspora Secretariat, which also maintains a record of officials abroad, for possible updates of these details, with which the Secretary of Diaspora had an administrative or other functional relationship by virtue of his position. Regarding the file that Mr. Theodoropoulos received via WhatsApp on 23/6/2023, ND argues that its circulation occurred without the knowledge and slightest involvement of the party and that after his resignation, he was not asked by the party to delete or destroy personal data files, as it was not known what this file contained and to avoid hindering the investigation of the competent Authorities. As for the existence of a breach incident, ND asserts that no such incident occurred, on the one hand because the data of party officials abroad are already publicly available on the internet, thus no right or freedom of theirs was endangered, while furthermore, according to the party's Data Processing Policy, the resigned Secretary is obliged to cease using them; on the other hand, because the list of expatriates circulated via WhatsApp, which was processed by the MEP and the former Secretary, was never available to ND, nor could it be in a state of full and undisputed knowledge of the risk to which the subjects might be exposed, so as to establish an obligation to notify the Authority. Moreover, as it states, it was not objectively feasible to correlate the two files (of party officials abroad and the list of expatriates), nor did the party possess all the critical information for the purpose of investigating the incident.

Mihalis Stavrianoudakis, in his memorandum G/EIS/4203/13-05-2024, reminds of the responsibilities of the General Secretariat of which he was the head, within the framework of which he collaborated with other services of the Ministry regarding electoral issues, emphasizing that when deemed necessary, they underwent lawful processing by the competent authorities for specific purposes, such as for determining electoral divisions and sending electoral material, aggregated and statistical

electoral data, without personal data from electoral rolls, to which the Elections Directorate had exclusive access. Finally, he reiterates that he never possessed files, specifically phone numbers and emails of Greek voters, nor did he ever give an order for them to be transmitted unlawfully, thus he is unaware if there was ever an unlawful transmission of electoral rolls.

The Ministry of Interior, in its memorandum G/EIS/4190/13-05-2024, states among other things: The critical transmission of the data of voters registered in the 2023 electoral rolls (including email addresses) was carried out by Mr. Theodoropoulos who sent them to MEP Ms. Asimakopoulou. There is no evidence in the case file linking the investigated processing with the Ministry of Interior in a circle of persons, nor does any relevant proof of unlawful transmission of the said personal data by a representative of the Ministry emerge. According to the above, the Ministry of Interior had only carried out the necessary lawful processing of the voters' data within the framework of its responsibilities for reasons...

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of their notification. From the evidence available so far, no connection has been proven between a specific individual acting under the supervision of the Ministry of Interior and the processing in question. The potential circulation of critical data by third parties cannot, in itself, establish liability for the Ministry for a breach of the obligations it bears as the data controller. In other words, the violation of the relevant legislation cannot be attributed to the Ministry of Interior as the data controller, since it has not been proven to date that the emails reached the Member of the European Parliament from the Ministry of Interior.

In any case, even if the Ministry's liability could be considered existing, it is significantly mitigated by the fact that the Ministry, as the data controller, had taken all necessary measures to prevent accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access to the critical personal data. It is also necessary to mention that from the very first moment the issue arose: a) The Ministry of Interior reported a potential personal data breach to the Authority on 18/3/2024 via the Authority's platform, within 72 hours of relevant publication in the media, b) The Ministry of Interior fully and effectively cooperated with the Authority and its teams investigating the case, c) The Ministry of Interior responded to all inquiries - requests from the data subjects based on Article 15 of the GDPR, and to date, 125 requests have been satisfied, specifically granting access to the subjects to their data, subject to prior identification of the subjects. The platform for expatriate voters has been activated for their direct access to the data held by the Data Controller in accordance with electoral legislation, and the interested parties have already been informed in writing by the Ministry of Interior about this possibility.

Furthermore, when forming the Authority's assessment regarding the imposition or not of any administrative sanction and to what extent, it is also essential to take into account the security measures that were in place prior to the critical processing/circulation of the personal data of Greek voters abroad: The Ministry of Interior had commissioned a security study of the system from the contractor company Singular Logic. Among other things, it provided for the use of network equipment offered by the Unified Government Cloud "G-Cloud" of the General Secretariat for Information Systems. A security study had been conducted for the Integrated Election Process Support System (ΟΣΥΕΔ). The security plan used was based on the international standard ISO/IEC 27001. The Elections Department conducted checks on the applications of expatriate voters only on the platform of the Directorate of Electronic Governance (ΟΣΥΕΔ). Unauthorized users could not access this system. Additionally, it is noted that during the period leading up to the May - June 2023 elections, security checks were carried out on the system by both the National Intelligence Service and the Cyber Defense Directorate of the General Staff of National Defense. Also, in accordance with the legislation (Article 3, paragraph 2 of Law 4648/2019), the copies of electoral rolls provided to MPs did not contain email addresses and phone numbers of residents abroad.

From the above, it can be concluded that the Ministry of Interior demonstrated due diligence and, in compliance with its obligations, took all necessary technical and organizational measures. In any case, in all systems, technical and organizational measures are subject to continuous improvement, and the

Ministry of Interior takes into account both the observations of the Data Protection Authority and the recommendations of the Authority while making efforts for continuous improvement and enhancement of these measures.

However, it is necessary to mention that in this specific case, the critical circulation of the data is neither attributed to nor proven to be due to the inadequacy of the security policy and protective measures of the Ministry of Interior's systems. On the contrary, the human factor appears to have played a leading and indeed exclusive role.

The Ministry of Interior has procedures for the rapid response and management of reported breaches. In this context, and with a view to effectively safeguarding the rights of the subjects, the very next day after the publication of the said complaints, an investigation was ordered by the leadership of the Ministry. Specifically,

- a. The next working day, following the initial complaints, an internal audit was ordered by the joint decision 350/4.3.2024 of the Minister and the Deputy Minister of Interior to confirm the adequacy and security of the personal data protection procedures concerning the 2023 electoral rolls and more broadly,
- b. The audit was completed after a thorough investigation (a large number of employees (28) were examined and data was collected), which was completed in a short period.

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(45 days) and demonstrated a sufficient level of security. Additionally, proposals for improving the level of security are formulated, taking into account the observations of the Data Protection Authority (DPA) and the recommendations of the Authority.

- c. Furthermore, it is noted that the report (submitted on 26.4.2024 with document EMF 425 from the Head of the Internal Audit Unit) concludes with recommendations for conducting an internal investigation, which was ordered on the same day, i.e., on 26.4.2024 (Joint Decision of the Minister of Interior and the Deputy Minister of Interior 109/26.4.2024 - Annex 1).
- d. With the written order 451/19.3.2024 from the Minister of Interior (Annex 2), the offices of the former General Secretary of Interior Michalis Stavrianoudakis were sealed with the implementation of all necessary safeguarding and protective measures (locking of offices and computers, deactivation of access codes) for the electronic and paper records of the Office so that the Authority can conduct its investigation without interruption and ensure that the results of the conducted investigation are not jeopardized by securing all guarantees for an uninterrupted and unassailable conduct of the relevant audits.
- e. With the EMF FIRST: 110/26.4.2024 joint decision of the Minister of Interior and the Deputy Minister of Interior (Annex 3) to the Service Secretary of the Ministry, it was decided to implement expertise in order to examine the existing security policies and to outline proposals for further improvement of the security systems and data protection procedures concerning the electoral process. The aim is to introduce actions for further strengthening the procedures with an emphasis on the Elections Directorate, as well as to optimize, where necessary, the specific incident handling policies for compliance with the procedures (recording the current situation regarding the regulatory framework on personal data protection ("Gap analysis"), implementation of a study to formulate proposals regarding any findings that may arise from the Deviation Assessment ("Roadmap") and the optimization of existing procedures (activity processing records, personal data protection policies, website policies, cookie policies, information systems security policies)).
- f. By order of the Minister of Interior, mandatory training was requested for all employees of the Ministry of Interior on issues of personal data protection in collaboration with the National Centre for Public Administration and Local Government (EKDDA) and the DPA. Specifically, with the document 700/1.5.2024 from the Minister of Interior (Annex 4) to the Vice President of the EKDDA, it is requested that, within the framework of optimizing the information, training, and awareness of the Ministry of Interior staff on matters concerning the application of the General Data Protection Regulation, the design and implementation of new specialized seminars be advanced in collaboration with the Training Institute (INEP) of the EKDDA, as well as with the Data Protection Officer of the Ministry of Interior.

The Authority, after examining the elements of the file and having heard the presenters and the clarifications from the assistant presenters, after thorough discussion

CONSIDERED ACCORDING TO THE LAW

A. APPLICABLE PROVISIONS

1. From the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the General Regulation (EU) 2016/679 for the protection of natural persons against the processing of personal data (hereinafter GDPR), this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 subparagraphs a, f, and h of the GDPR and 13 paragraph 1 subparagraphs g and h of Law 4624/2019, it follows that the Authority has the competence to address complaints submitted to the Authority regarding unlawful processing of personal data, to ex officio investigate potential leaks of personal data, and to exercise, accordingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

2. As "processing" of personal data according to Article 4 paragraph 2 of the GDPR is understood any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

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3. As the "data controller," according to Article 4(7) of the GDPR, is defined the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its appointment may be provided for by Union law or the law of a Member State. As the "processor" (Article 4(8) of the GDPR) is defined the natural or legal person, public authority, agency, or other body that processes personal data on behalf of the data controller, while as a "third party" (Article 4(10) of the GDPR) is understood any natural or legal person, public authority, agency, or body, except for the data subject, the data controller, the processor, and the persons who, under the direct authority of the data controller or the processor, are authorized to process personal data. Furthermore, according to Article 29 of the GDPR, "The processor and any person acting under the authority of the data controller or of the processor, who has access to personal data, shall process those data only on instructions from the data controller, unless required to do so by Union law or the law of a Member State." Consequently, in the case of processing personal data by a natural person on behalf of the data controller, that is, in the exercise of their duties within the framework of the activities and objectives pursued by the data controller, the actions of the natural person are attributed to the legal entity. As noted in the EDPB Guidelines 07/2020 on the concepts of the data controller and the processor in the GDPR - Version 2.0 (July 7, 2021)², "In principle, any processing of personal data carried out by employees in the context of an organization's activities can be considered as being carried out under the control of that organization (since employees who have access to personal data within an organization are generally not considered 'data controllers' or 'processors,' but rather 'persons acting under the authority of the data controller or the processor' within the meaning of Article 29 of the GDPR). In exceptional circumstances, however, an employee may decide to use personal data for their own purposes and, as a result, unlawfully exceed the powers assigned to them (e.g., to establish their own company or for a similar purpose). Consequently, as the data controller, the organization has a duty to ensure that appropriate technical and organizational measures are implemented, including training and informing employees, which will ensure compliance with the GDPR." (§19). The same EDPB Guidelines also clarify: "In practice, the processing of personal data involving multiple actors can be broken down into several smaller processing activities for which it could be considered that each actor determines the purpose and means of processing independently. Moreover, a sequence or series of processing operations involving multiple actors may also be carried

out for the same purpose(s), so it is likely that the processing may involve one or more joint data controllers. In other words, at the 'micro-level,' various individual processing actions may appear to be disconnected from one another, giving the impression that each individual action may serve a different purpose. However, it is necessary to thoroughly examine whether at the 'macro-level' these processing actions should not be considered as a 'series of operations' aimed at a common purpose using jointly determined means." (§43). Anyone deciding to process data must consider whether such processing involves personal data and, if so, what obligations they have under the GDPR. An actor is considered a "data controller" even if they do not intentionally target the personal data itself or have mistakenly assessed that they are not processing personal data." (§44). The EDPB clarified, finally, that access to the filing system is not a prerequisite for being designated as a data controller, nor is "ownership" of the filing system or supervision over it, as long as they determine the purpose of processing even in "foreign" files: "The data controller does not need to actually have access to the data being processed. Anyone assigning processing activities to an external provider while exercising critical influence over the purpose and (essential) means of processing (e.g., by adjusting service parameters in such a way as to influence the selection of the individuals whose personal data are being processed) is considered..."

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"data controller, even if it has no actual access to the data" (§45). As has been determined by the CJEU, any natural or legal person who influences the processing of personal data for their own purposes and thus participates in determining the objectives and means of the processing can be considered a data controller. The Union legislator did not distinguish between natural and legal persons for the establishment of liability under the GDPR, as this liability depends solely on the condition that these persons, alone or jointly with others, determine the purposes and means of processing personal data. Therefore, any person who meets this condition—regardless of whether they are a natural or legal person, a public authority, service, or other entity—is liable, among other things, for any violation referred to in Article 83 paragraphs 4 and 6, which is committed by them or on their behalf, while the imposition of sanctions on a legal entity as a data controller does not depend on the prior identification that the violation was committed by an identified natural person. As determined by the CJEU, for the exemption of a legal entity data controller from liability for damages under Article 82 of the GDPR, it is not sufficient to claim that the damage in question was caused by the fault of a person acting under its supervision, within the meaning of Article 29 of the GDPR. Specifically, Article 32 paragraph 4 of the GDPR, regarding the security of processing, provides that the data controller takes measures to ensure that any natural person acting under its supervision and having access to such data processes it only on the instructions of the data controller, unless required to do so by Union or Member State law. Given that the employees of the legal entity data controller act under its supervision, it is the responsibility of that controller to ensure that its instructions are properly followed by them, and therefore, the legal entity cannot be exempted from its liability simply by claiming negligence or omission of its employee. Furthermore, the Authority has also accepted that a natural person—an employee of the data controller—can be considered a data controller if they use data for their own purposes outside the scope and potential control of the activities of the legal entity.

3 See CJEU judgment C-25/17 (paragraph 68).

4 See CJEU judgment C-807/21 (paragraphs 38-51).

5 See CJEU judgment C-741/21 (paragraphs 44 – 54).

6 See Hellenic Data Protection Authority decision 54/2021 (paragraphs 4-6), published on the Authority's website.

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4. Political parties are associations of persons, which, according to paragraph 6 of Article 29 of Law 3023/2002, acquire legal personality upon their establishment for the fulfillment of their constitutional mission.

5. Article 5 paragraph 1 of the GDPR sets out the principles that must govern processing. According to paragraphs 1 a), d), and f) of this article, "1. Personal data: a) shall be processed lawfully and fairly in a

transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), b) are collected for specified, explicit, and legitimate purposes and are not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research or statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ('purpose limitation'), [...] f) shall be processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')." According to Recital 39 of the GDPR, "Any processing of personal data should be lawful and fair. It should be clear to individuals that personal data concerning them is being collected, used, consulted, or otherwise processed, and to what extent the personal data is processed or will be processed. [...] Personal data should be processed in a manner that ensures appropriate protection and confidentiality of personal data, including to prevent any unauthorized access to such personal data (...)." Furthermore, according to the principle of accountability explicitly defined in the second paragraph of the same article and which constitutes a cornerstone of the GDPR, the data controller "is responsible and able to demonstrate compliance with paragraph 1 ('accountability')." This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5 paragraph 1.

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6. As is consistently accepted by the EDPB, the principles of objectivity, legality, and transparency of processing, enshrined in Article 5(1)(a) of the GDPR, are three distinct but inherently interconnected and interdependent principles that must be respected by every data controller when processing personal data. The link between the three principles is evident from a series of recitals (39, 42, 60, 71) and provisions (Articles 6(2), 6(3)(b), 13(2), 14(2), and 40(2)(a)) of the GDPR. Objectivity is a fundamental principle according to which personal data must not be processed in a manner that is unjustifiably detrimental, introduces unfair discrimination, or is unpredictable or misleading for the data subject. Among other things, this principle includes the recognition of the legitimate expectations of data subjects regarding potential negative consequences that may arise from the processing for them and the examination of the relationship and potential impacts of inequality between them and the data controller. Specifically, certain personal data are expected to remain private or to be processed only in certain ways, and their processing should not come as a surprise to the data subject. Furthermore, processing is lawful (principle of legality) only if it is based on one of the legal bases referred to in Article 6(1) of the GDPR. In particular, regarding the legal basis of legitimate interests (Article 6(1)(f) GDPR), Recital 47 of the Regulation states the following: "The legitimate interests of the data controller, including those of a data controller to whom the personal data may be disclosed or of third parties, may provide the legal basis for processing, provided that they do not override the interests or fundamental rights and freedoms of the data subjects."

7 See in particular a) EDPB Guidelines 4/2019 on Article 25 - Data Protection by Design and by Default, §69, b) EDPB Guidelines 2/2019 on the processing of personal data under Article 6(1)(b) of the GDPR in the context of providing online services to data subjects (EDPB Guidelines 2/2019) §12, and c) EDPB Binding Decision 2/2023, §99-107.

8 See EDPB Binding Decision 5/2022, §148: "The EDPB recalls that, in data protection law, the concept of fairness stems from the EU Charter. The EDPB has already provided some elements as to the meaning and effect of the principle of fairness in the context of processing personal data. [...] Among the key fairness elements that controllers should consider in this regard, the EDPB mentions autonomy of the data subjects, data subjects' expectation, power balance, avoidance of deception, ethical and truthful processing. [...] The principle of fairness under Article 5(1)(a) GDPR underpins the entire data protection framework and seeks to address power asymmetries between controllers and data subjects in order to cancel out the negative effects of such asymmetries and ensure the effective exercise of data subjects' rights."

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interests or the fundamental rights and freedoms of the data subject, taking into account the legitimate

expectations of the data subjects based on their relationship with the data controller. Such legitimate interest could exist, for example, when there is a relevant and appropriate relationship between the data subject and the data controller, such as when the data subject is a customer of the data controller or is in their service. In any case, the existence of a legitimate interest would require careful assessment, including whether the data subject, at the time and in the context of the collection of personal data, can reasonably expect that processing for this purpose may occur. Specifically, the interests and fundamental rights of the data subject could outweigh the interests of the data controller when personal data is processed in cases where the data subject does not reasonably expect further processing of their data. Furthermore, paragraph 4 of Article 6 of the GDPR states that the processing of personal data for purposes other than those for which the personal data were initially collected is permitted only if the processing is compatible with the purposes of the initial collection, taking into account the criteria mentioned in this provision and, in particular, the context in which the data were collected and the reasonable expectations of the data subject based on their relationship with the data controller regarding further use. At the same time, Recital 50 of the GDPR makes it clear that the fulfillment of all the legality requirements of the initial processing is a necessary condition that must be verified by the data controller before assessing the compatibility of the further processing purpose with the initial one. Regarding the adherence to the principle of transparency, Articles 13 and 14 of the GDPR specifically define the information that must be provided to the data subject by the data controller, both in cases where the data is collected from the data subject (Article 13) and in cases where the data has not been collected from the data subject (Article 14). According to Article 14 paragraphs 1 and 2 of the GDPR, "1. When the personal data has not been collected from the data subject, the data controller provides the data subject with the following information: a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) the relevant categories of personal data, e) the recipients or categories of recipients of the personal data, if applicable (...). 2. In addition to the information referred to in paragraph 1, the data controller provides the data subject with the following information that is necessary to ensure fair and transparent processing regarding the data subject: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, b) if the processing is based on Article 6 paragraph 1 point f), the legitimate interests pursued by the data controller or by a third party, c) the existence of the right to request from the data controller access to and rectification or erasure of personal data or restriction of processing concerning the data subject and the right to object to processing, as well as the right to data portability, (...), e) the right to lodge a complaint with a supervisory authority, f) the source from which the personal data originate and, where applicable, whether the data originated from publicly accessible sources (...)." According to paragraph 3 of the same article, "The data controller provides the information referred to in paragraphs 1 and 2: a) within a reasonable period after the collection of the personal data, but at the latest within one month, taking into account the specific circumstances under which the personal data are processed, b) if the personal data are to be used for communication with the data subject, at the latest at the time of the first communication with the data subject, or c) if disclosure to another recipient is foreseen, at the latest when the personal data are first disclosed." Furthermore, according to paragraph 4 of the same article, "When the data controller intends to further process the personal data for a purpose other than that for which the personal data were collected, the data controller must provide the data subject with information regarding that further processing before such processing occurs."

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processing, information for this purpose and any other necessary information, as mentioned in paragraph 2."

7. The data controller must facilitate the exercise of the rights of data subjects provided for in Articles 15 to 22 (Article 12(2) GDPR), which include the right of access under Article 15 GDPR and the right to erasure under Article 17 GDPR, under the conditions mentioned therein, as well as to act in any case upon the request of the data subject based on Articles 15-22 GDPR, informing the data subject within

one month from the submission of the request (Article 12(3) GDPR). If there are reasonable doubts regarding the identity of the individual submitting a request under Articles 15 to 21, the data controller may request the provision of additional information necessary to confirm the identity of the data subject (Article 12(6) GDPR). According to paragraph 3 of Article 15 GDPR, "The data controller provides a copy of the personal data undergoing processing. For additional copies that may be requested by the data subject, the data controller may charge a reasonable fee for administrative costs. If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format."

8. According to Article 30(1), (3), and (4) GDPR, "1. Each data controller and, where applicable, their representative, shall maintain a record of processing activities for which they are responsible. This record shall include all of the following information: a) the name and contact details of the data controller and, where applicable, the joint data controller, the representative of the data controller, and the data protection officer; b) the purposes of the processing; c) a description of the categories of data subjects and the categories of personal data; d) the categories of recipients to whom the personal data are to be disclosed or have been disclosed, including recipients in third countries or international organizations; e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49(1) second subparagraph, the documentation of the appropriate safeguards; f) where possible, the envisaged time limits for erasure of the different categories of data; g) where possible, a general description of the technical and organizational measures referred to in Article 32(1). 3. The records referred to in paragraphs 1 and 2 shall be in writing, including in electronic form. 4. The data controller or the processor and, where applicable, the representative of the data controller or the processor shall make the record available to the supervisory authority upon request."

9. According to the provisions of paragraphs 1 and 2 of Article 32 GDPR regarding the security of processing, "1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, [...] 2. In assessing the appropriate level of security, account shall be taken, in particular, of the risks that arise from the processing, in particular from accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed." Furthermore, according to Article 25, paragraph 1, "Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons from the processing, the data controller shall effectively implement, both at the time of determining the means of processing and at the time of the processing, appropriate technical and organizational measures, such as pseudonymization, designed to implement data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing in such a way that the requirements of this Regulation are met and the rights of data subjects are protected." Furthermore, the provision of Article 24(1) GDPR states: "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate..."

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technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with this regulation. These measures are reviewed and updated when deemed necessary.

10. Political communication is understood as communication carried out by political parties, members of parliament, members of the European Parliament, factions, and holders of elected positions in local government or candidates in parliamentary elections, European Parliament elections, and local government elections at any time, whether pre-election or not, for the promotion of political ideas,

action programs, or other activities aimed at supporting them and shaping political behavior. Following the decisions No. 1343-5/2022 of the Council of State, which ruled that the activity of political communication, as not aimed at commercial promotion, does not fall under Law 3471/2006, the Authority re-examined, within the scope of its competence, the issues of legality arising in relation to political communication in order to determine the framework for the lawful processing of personal data for this purpose based on the provisions of the GDPR, and with Decision 9/2023¹⁰ decided to issue Guidelines 1/2023 for the processing of personal data for the purpose of political communication. With these Guidelines (hereinafter referred to as "GCG 1/2023"), it is clarified, among other things, the following: According to the democratic principle, the activity of political communication is protected by the Constitution, particularly within the framework of the general right to participate in the political life of the country (Article 5, paragraph 1 of the Constitution), the right of citizens to information (Article 5A, paragraph 1 of the Constitution), and the fulfillment of the constitutional mission of political parties (Article 29, paragraph 1 of the Constitution). However, when methods are used that require or consist of the processing of personal data, such as names, postal addresses, telephone numbers, email addresses of individuals, etc., political communication must be conducted in a manner that ensures respect for Article 9A of the Constitution and national and European legislation for the protection of personal data (ad hoc Council of State 1343-5/2022, para. 14). In the above cases, the entities and individuals conducting political communication become data controllers, according to the definition of Article 4, paragraph 7 of the GDPR, to the extent that they determine the purpose and means of processing personal data. For example, when a member of parliament or a parliamentary candidate receives data from the political party they belong to and processes it for their personal political communication, they become the data controller themselves. In this capacity, according to the fundamental principle of accountability in the GDPR (Article 5, paragraph 2), the aforementioned individuals must be able to demonstrate compliance with the basic principles of data processing, as provided in Article 5, paragraph 1 of the GDPR. Regarding the legal basis for processing personal data in the case of political communication, the GCG 1/2023 clarified that such processing may be based either on the prior consent of the data subjects (Article 6, paragraph 1, subparagraph a of the GDPR) or on a legitimate interest that may arise (Article 6, paragraph 1, subparagraph f of the GDPR). Specifically, political communication may rely on the legal basis of the legitimate interest of the data controller, provided that it is demonstrated that the processing is necessary for the satisfaction of the legitimate interest of the data controller in promoting their political positions, and that this interest does not override the interests or fundamental rights and freedoms of the data subjects, taking into account their legitimate expectations based on their relationship with the data controller (See Recital 47 of the GDPR). The processing of personal data for the purpose of political communication is also permitted under Article 6, paragraph 4 of the GDPR, provided that the purpose of political communication is deemed compatible with the purposes for which the personal data were initially collected by the data controller. To ascertain whether the purpose of political communication is compatible with the purpose of the initial collection of personal data, provided that all requirements for the legality of the initial processing are met, the data controller must take into account, among other things:

- Any relationship between the initial purposes and the purposes of the intended further processing;
- The context in which the personal data were collected, particularly the reasonable expectations of the data subject based on their relationship with the data controller regarding their further use;
- The nature of the personal data;
- The consequences of the intended further processing for the data subjects;

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- and the existence of appropriate guarantees for both the initial and the intended further processing activities (See Recital 50 GDPR).

The KGs 1/2023 also emphasize that in the case of collecting data for the purpose of political communication based on the legal ground of legitimate interest (Article 6(1)(f) GDPR), according to the principle of accountability under Article 5(2) GDPR, the data controller must be able to adequately document the balancing test that must be conducted prior to the commencement of processing, and based on which it assessed that the interests of the data subjects do not outweigh the interests or

fundamental rights and freedoms of the subjects - recipients of the political communication. Similarly, in the case of further use of the data for the purpose of political communication, the data controller must be able to demonstrate compliance with the criteria of paragraph 4 of Article 6 GDPR regarding the compatibility of the purpose. The KGs 1/2023 provide illustrative examples of cases in which personal data cannot be used for the purpose of political communication, as well as cases in which, based on the assessment of the specific circumstances, the legality of processing personal data for the purpose of political communication can be substantiated. From the examples of these latter cases, it follows that the collection of data from a lawful source is in every case a necessary condition for legitimate processing.

Finally, the KGs 1/2023 remind of the information that must be provided in every electronic communication for the purpose of political communication, which includes the source from which the contact details of the subject have been collected, provided that it is not the subject itself (Article 14(2)(f)), while it is emphasized that in the event of exercising the right to object, the data controller must, in principle, cease processing the subject's data for the purpose of political communication (Article 21(1)(b) GDPR).

11. Regarding the provision of electoral roll data to parties and candidates, Article 23 of P.D. 26/2012 stipulates the following: "1. One (1) complete set of electoral rolls in digital media without payment, as well as one (1) set of copies of publications of the Ministry of Interior with electoral content, are entitled to the parties represented in the Parliament or the European Parliament. Also, the above items are entitled during the pre-election period to recognized parties, according to the Regulation of the Parliament, as well as those forming combinations in 2/3 of the electoral districts of the State, both residents and non-residents. 2. Copies of electoral rolls may be made available during the pre-election period upon payment to the State, as determined by the Minister of Interior, to Members of Parliament, MEPs, candidates for Members of Parliament, or candidates in regional, municipal, and community elections, and only for the electoral districts, regions, or municipalities where they have been elected, as evidenced by the relevant declarations of their proclamation or where they will be candidates according to their written statement. 3. The beneficiaries must destroy the electronic media containing the electoral rolls within three months from the completion of the electoral contests according to their written statement. 4. The terms and conditions for the provision of electoral rolls and other publications to other persons and entities are determined by a decision of the Minister of Interior. 5. The above data is provided to the beneficiaries only in electronic media, is not transferred to them electronically, and is used only by the person to whom it is granted exclusively and solely for electoral use. 6. The granting to any other person or the use by anyone else or for a non-electoral purpose is prohibited. 7. Violators are punished with the penalties of paragraph 4 of Article 117." From the above provisions, it can be inferred that the beneficiaries of electronic copies of the electoral rolls include, among others, the parties represented in the Parliament or the European Parliament, as well as MEPs only during the pre-election period, that the electoral rolls may only be provided on a storage medium (CD) while their electronic circulation in any other way is prohibited, and finally that each beneficiary must destroy the electronic media containing the electoral rolls within three months from the conduct of the elections.

12. Furthermore, according to paragraph 9 of Article 3 of Law 4648/2019 ("Facilitation of the exercise of electoral rights of voters residing outside the Greek territory and amendment of the electoral process", Government Gazette A' 205/16.12.2019), the Elections Directorate of the Ministry of Interior compiles and maintains the special electoral rolls for abroad. Article 3 of Law 4648/2019 defines the content of the special electoral rolls for abroad as follows: "1. The special electoral rolls for abroad that are compiled bear the title 'Special Electoral Roll for Abroad' and contain the following: a) the serial number, b) the Special Electoral Number, c) the surname, d) the first name, e) the father's name, f) the mother's name, g) the spouse's name and surname.

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father (if it concerns a married woman who bears her husband's surname), h) the date and time of birth, i) the main electoral roll (main electoral district) where they are registered (region, municipality, electoral division), j) the full residential address, k) the email address, l) the contact phone numbers,"

while according to paragraph 2 of the same article "2. The provisions of Article 23 of Presidential Decree 26/2012 apply accordingly to the special electoral rolls abroad, subject to the details k) and l) of the above paragraph." From the above provisions, it is clear that the electronic communication details (email address and contact phone number) are excluded from the availability of the electoral rolls to the beneficiaries of Article 23 of P.D. 26/2012. The registration of Greeks voting abroad in the special electoral rolls is done through a special application that operates on the website of the Ministry of Interior, under the responsibility of the Ministry, to which access is granted using the login credentials for applications of the Independent Authority for Public Revenue (AADE), in accordance with the provisions of Article 4 paragraphs 1 and 2 of Law 4648/2019. The procedures for registration, modification, and suspension or deletion of the registration application in the special electoral rolls abroad are determined by a Ministerial Decision under the authorization of paragraph 7 of Article 4, while according to Article 5 of the same law, the Ministry of Interior updates these lists based on any changes that occur to the voters and incorporates the confirmed registration applications and any changes to them in the next revision of the main electoral rolls. Paragraph 6 of Article 2 of Law 4648/2019, as it was in effect until its repeal by Article 1 paragraph 4 of Law 5044/2023 (Government Gazette A 135/28.7.2023), provided for the establishment of a Special Interparty Committee to examine objections from voters regarding rejected registration decisions in the electoral rolls as follows: "By decision of the Minister of Interior, which is published in the Government Gazette, a Special Interparty Committee is formed, which includes the aforementioned Minister or the person designated by him, as President, and one representative from each party or coalition represented in the Parliament or represented in the dissolved Parliament. All members are appointed with their alternates. A representative of the Independent Authority of the Ombudsman is designated as the rapporteur, without voting rights. The Committee, which has decisive authority, is tasked with examining objections to rejected registration decisions in the special electoral rolls of the present, for which the procedure of paragraph 5 was not followed, the review of specific applications upon request from a member or members of the Committee, as well as the random check of the applications that were accepted under paragraph 3. If one or more parties or combinations of parties do not designate a representative within two (2) days from the receipt of the request, the Committee is legally constituted without their participation."

13. A breach of personal data (Article 4 paragraph 12 GDPR) is understood as "a security breach that leads to accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data that has been transmitted, stored, or otherwise processed." According to the Guidelines 18/2018 of the Article 29 Working Party of Directive 95/46/EC (now European Data Protection Board) on Personal Data Breach Notification ("Guidelines on Personal data breach notification under Regulation 2016/679" WP 250 rev. 1) dated 06-02-2018, one type of personal data breach is categorized based on the security principle of "confidentiality," when unauthorized access to personal data is identified ("confidentiality breach"). A breach may potentially have various significant adverse consequences for individuals, which can lead to physical, material, or moral harm. The GDPR explains that this harm may include loss of control over their personal data, restriction of their rights, discrimination, identity theft or misuse, financial loss, unlawful reversal of pseudonymization, damage to reputation, and loss of confidentiality of personal data protected by professional secrecy, etc. (see also recitals 85 and 75). Data breach incidents must be reported to the Authority within 72 hours from the moment the data controller becomes aware of them, according to Article 33 paragraph 1 GDPR: "1. In the event of a personal data breach, the data controller shall notify without undue delay and, where feasible, within 72 hours of becoming aware of the personal data breach to the supervisory authority competent pursuant to Article 55, unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons. When the notification to the supervisory authority is not made within 72 hours, it shall be accompanied by reasons for the delay." The notification must contain at least the minimum information referred to in paragraph 3 of Article 33 GDPR, while according to paragraph 5 of the same article "The data controller documents any personal data breach,

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which consist of the factual circumstances regarding the breach of personal data, the consequences,

and the corrective measures taken. This documentation allows the supervisory authority to verify compliance with the current article." If it is not possible to provide all the required information at once, paragraph 4 of Article 33 GDPR stipulates that it may be provided to the Authority "in phases, without undue delay." Regarding the time of knowledge of the incident by the Data Controller, the aforementioned WP29 Guidelines (wp 250) state the following: "As detailed above, the GDPR requires, in the event of a breach, the data controller to notify the breach without undue delay and, where feasible, within 72 hours of becoming aware of the fact. This may raise the question of when a data controller can be considered to have acquired 'knowledge' of a breach. WP29 considers that a data controller should be deemed to have acquired 'knowledge' when the data controller has a reasonable degree of certainty that a security incident has occurred that results in personal data being compromised. However, as previously mentioned, the GDPR requires the data controller to implement all appropriate technical and organizational measures for the immediate detection of any breach and the prompt notification of the supervisory authority and the data subjects. It also states that it should be established that the notification was made without undue delay, taking into account in particular the nature and severity of the data breach, as well as the consequences and adverse effects for the data subject. In this way, the data controller is obliged to ensure that it acquires 'knowledge' of any breaches in a timely manner so that it can take appropriate actions. The exact point in time when a data controller can be considered to have acquired 'knowledge' of a specific breach will depend on the circumstances of the particular breach. In some cases, it will become relatively clear from the outset that a breach has occurred, while in others, it may take some time to ascertain whether personal data has been compromised. However, emphasis should be placed on the timely action to investigate an incident to determine whether personal data has been breached and, in such cases, to take corrective measures and notify, if required." Furthermore, the breach must also be communicated to the data subject, as applicable and in accordance with the provisions of Article 34 paragraphs 1 and 2 GDPR: "1. When a personal data breach is likely to result in a high risk to the rights and freedoms of natural persons, the data controller shall notify the personal data breach to the data subject without undue delay. 2. The notification to the data subject referred to in paragraph 1 of this Article shall describe in clear and plain language the nature of the personal data breach and shall contain at least the information and measures referred to in Article 33 paragraph 3 points b), c), and d)." In assessing the risk, according to recitals 75 and 76 GDPR, the likelihood and severity for the rights and freedoms of the data subjects should be taken into account, and the risk should be assessed based on an objective evaluation. According to Guidelines 18/2018 of WP29, in assessing the risk to individuals as a result of a breach, the data controller should consider the specific circumstances of the breach, including the severity of the potential impact and the likelihood of its occurrence, taking into account a range of criteria: the type of breach, the nature, sensitivity, and volume of data, the ease of identifying individuals, the severity of the consequences for individuals, the specific characteristics of the individual, the specific characteristics of the data controller, and the number of affected individuals (wp 250 rev.01, pp. 28-31). Therefore, Article 33 GDPR not only imposes the obligation to notify breach incidents to the supervisory authority but also the obligation to actively investigate any potential incident, provided that the data controller becomes aware of relevant indications. Furthermore, from paragraph 3 of Article 33 GDPR, which specifies the elements that must be included at a minimum in the notification, it follows that the data controller has the obligation to promptly investigate the information referred to in this provision so that it can include it in the notification to the Authority (nature of the breach, categories and number of affected subjects, number of affected records, potential consequences of the breach, measures taken or proposed to be taken to address the breach, measures to mitigate potential adverse consequences), as well as to assess the risk to the rights and freedoms of the data subject, in order to decide whether notification is required under Article 34 GDPR, while paragraph 5 of Article 33 GDPR explicitly states the obligation to maintain documentation for all the above processes (see also Decision DPA 35/2023).

B. FINDINGS - SUBMISSION

1. Anna Michelle Asimakopoulou

For the assessment of the legality of the processing of personal data of expatriate voters carried out by Anna Michelle Asimakopoulou during the period from 20/1/2024 to 1/3/2024, specifically the collection of personal data of expatriates, including electronic communication details, the creation of a new file for upload to the MailChimp service, which included the name, country, and email of the voters, and the use of the electronic address (email) of expatriates for sending political communication, the following findings from the investigation are taken into account:

- a) The purpose of the processing was political communication to promote postal voting, as part of the government's work and the candidacy of the MEP in the upcoming European elections in June 2024, through her electoral campaign titled "100 days before the European elections." The MEP, as a candidate in the upcoming elections, determined the purpose and means of processing, thus being the data controller within the meaning of Article 4 No. 7 of the GDPR.
- b) The Excel file titled "Expatriates by Department for Electoral Committee Draws - Boul Ekli June 2023.xlsx" (sic) was extracted on 8/6/2023 from the Ministry of Interior's database for a lawful purpose (see (c) below).
- c) The aforementioned file included the email addresses of the voters, with the aim of informing them by the local Embassies in case they were drawn as members of the electoral committee, and also for mass communication from the Ministry of Interior regarding the possibility of cancellation or suspension of their registration in the special electoral register for expatriates, in case they wished to vote in Greece (where they are registered in the main electoral register).
- d) MEPs belong to the persons entitled to obtain copies of electoral registers under the conditions of Article 23 of Presidential Decree 26/2012, that is, only during the pre-election period, from the Ministry of Interior upon their relevant request, only on a storage medium (CD) explicitly prohibiting the electronic circulation of the electoral registers in any other way, and they are obliged to destroy the said electronic media within three months from the conduct of the elections.
- e) According to Article 3 of Law 4648/2019, the copies of the electoral registers for expatriates provided to the beneficiaries of Article 23 of Presidential Decree 26/2012 do not include the email addresses and contact phone numbers of the voters.
- f) The storage media (CDs) provided by the Ministry of Interior to political parties in view of the parliamentary elections of May and June 2023 did not include the email addresses or contact phone numbers of expatriate voters, and no individual in the capacity of a candidate requested a copy of the special electoral registers for expatriates for 2023.
- g) The file received by Anna Michelle Asimakopoulou from the former Secretary of Expatriates of the New Democracy party, Mr. Theodoropoulos, on 20/1/2024 via WhatsApp is the file "Expatriates by Department for Electoral Committee Draws - Boul Ekli June 2023.xlsx" (sic) from the Ministry of Interior, (as has been established from both the content and the metadata) without substantiating the claim that a related phone communication with the party took place on 18-1-2024.
- h) The aforementioned MEP, as the data controller, did not provide the complete information required under Article 14 of the GDPR to the data subjects within one month from the collection of the data, nor with the email through which she contacted them on 1/3/2024.

Based on the above findings, the collection of personal data of expatriates, including electronic communication details, by Ms. Asimakopoulou, from the former Secretary of Expatriates of the New Democracy party, at a time outside the pre-election period, through electronic means (WhatsApp application), constitutes an unlawful, non-objective, and non-compliant processing: Given that the said processing (collection) was carried out in violation of a series of provisions of electoral legislation, it could not reasonably be expected by the data subjects (expatriate voters) that their personal data held by the Ministry of Interior for the purpose of exercising their voting rights, including their electronic communication details, would be in the possession of an MEP and used for the purpose of political communication via email. For the same reason, the further individual acts of processing for the same purpose, namely the creation of a new file for upload to the MailChimp service, which included the name, country, and email of the voters, and the use of the electronic address (email) of expatriates for sending political communication are also unlawful and illegal. Furthermore, the aforementioned processing of data of expatriate voters cannot be supported by the legal basis of the overriding

interest.

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of legitimate interest (Article 6(1)(f) GDPR), since, taking into account the above circumstances, the right of expatriate voters to the protection of their personal data clearly outweighs the legitimate interest of the Member of the European Parliament to communicate with them individually for the dissemination of her political actions and ideas. Furthermore, appropriate and GDPR-compliant information (Article 14) was not provided to the data subjects, particularly regarding the source of their data, resulting in a violation of the principle of transparency of processing. Therefore, the processing of expatriate data carried out by Ms. Asimakopoulou from 20/1/2024 to 1/3/2024 violated the fundamental principles of lawfulness, fairness, and transparency of processing, as per Article 5(1)(a) GDPR.

Based on the above, the Authority deems it appropriate to exercise its corrective powers under Article 58(2) of the GDPR concerning the identified violations and that, based on the established circumstances, an order for the deletion of personal data should be issued, and an effective, proportionate, and deterrent administrative monetary fine should be imposed pursuant to the provision of Article 58(2)(h) of the GDPR, in accordance with Article 83 of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior. Furthermore, the Authority took into account the criteria for determining the fine as set out in Article 83(2) of the GDPR, paragraph 5(a) of the same article applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for the calculation of administrative fines under the General Regulation, as well as the factual data of the case under examination, based on which the severity of the violation is assessed as medium, and taking into account in particular:

- o that the nature of the violation concerns a fundamental principle of the GDPR,
- o that the purpose of the processing is legitimate and that the processing does not result in immediate serious consequences for the data subjects,
- o that the processing is not part of the core activities of the data controller,
- o that it constitutes a singular activity of the data controller, which does not constitute a business according to Articles 101 and 102 TFEU,

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- o the large number of affected subjects (25,610), who are indeed the total number of registered voters abroad,
- o that the categories of personal data involved in the processing do not pose a high risk (Articles 9-10 GDPR, communications, location, financial, etc.), and from these, no immediate harm or difficulty can arise.
- o the disturbance and concern caused to the data subjects regarding the leakage and illegal use of their personal data, as evidenced by the number and content of complaints submitted to the Authority.
- o the fact that the violation was caused by gross negligence on the part of the Member of the European Parliament, who, due to her position and extensive experience, should have known that she was not entitled to possess the specific file. Furthermore, she should have taken into account the Guidelines 1/2023 of the Authority regarding communication policy, from which it is clearly evident that an obvious prerequisite for the legality of any related processing is the initial collection of data from a lawful source (see pages 6-7: in every illustrative example provided, it is explicitly stated that the candidate must have "lawfully collected" the data).

Regarding the manner of satisfying the exercised rights of access of the subjects, from the submitted evidence to the Authority, there is no indication of a violation of the right, given that Ms. Asimakopoulou provided the information required by Article 15.1.

2. Ministry of Interior

For the assessment of the legality of the acts of processing personal data of expatriate voters carried

out by the Ministry of Interior, the following findings are taken into account:

11 Available on the Authority's website: https://www.dpa.gr/sites/default/files/2023-04/%CE%9A%CE%91%CE%A4%CE%95%CE%A5%CE%98%20%CE%93%CE%A1%CE%91%CE%9C%CE%9C%CE%95%CE%A3%201_2023.pdf

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α) The Ministry of Interior is the data controller for the processing of personal data of Greek citizen voters for the purpose of conducting the electoral process. In fact, according to Law 4648/2019, the Ministry of Interior is the data controller for the processing of personal data for the exercise of electoral rights of voters residing outside the Greek territory.

β) According to the applicable provisions, as acknowledged by the Ministry of Interior in its document with reference number Γ/ΕΙΣ/2325/12-03-2024, the electronic communication details (email address and contact phone number) of those registered in the electoral rolls abroad are not included in the copies of the electoral rolls abroad provided to the entitled parties, in accordance with Article 23 of P.D. 26/2012. The Ministry also states in its document that during the pre-election periods of May – June 2023, no individual in the capacity of a candidate requested a copy of the special electoral rolls abroad for 2023, and the political parties that received electoral rolls with the A' Revision 2023, including the electoral sections, also received a file with the special electoral rolls abroad. From the on-site investigation of the Authority, it was confirmed that these files did not include email addresses of the voters.

γ) From the Authority's investigation, it was found that an MS Excel file exported on 8/6/2023 from the OSYED system for the purpose of conducting draws for electoral committees of the expatriate sections, which contained data of those registered in the special electoral rolls abroad for the upcoming parliamentary elections of 25/6/2023, was found outside the Ministry of Interior, in the possession of third parties. The file contained information on 25,610 citizens, which is the total number of those registered in the expatriate electoral rolls for the June 2023 elections, and included the following fields: Voting Country, Voting City, Section, Country of Origin, City of Origin, Voter ID in the List, Gender, Surname, Name, on_pat, on_mht, on_syz, epon_pat, date_of_birth, HomeAddress, Street, StreetNumber, Region, PostCode, E-mail. On 23/6/2023, this file was sent to the Secretary of Expatriates of New Democracy, as evidenced by the message in the WhatsApp application provided by him. As also evidenced by a message in the WhatsApp application provided by Mr. Theodoropoulos, the same file was sent by him on 20/1/2024 to the MEP Ms. Asimakopoulou, who processed the data for sending emails to the citizens included in it on 1/3/2024.

δ) Only specially authorized individuals had the ability to export data in bulk from the OSYED system, through executing queries in the database. Regarding the data of voters abroad, it was found that there had been mass exports for the purpose of sending electronic communications on behalf of the Ministry regarding the electoral process as well as for the needs of the draw of the electoral committees through the embassies, in accordance with Law 4648/2019.

ε) For the aforementioned purposes, the .xls files containing the electoral roll data were circulated to the responsible employees, either for action or for their information, via email and without any specific security measures being taken. As a result, each of the recipients had the ability for local storage, export to removable media, or even transmission of the file via messaging applications.

στ) Data from the electoral rolls had been requested and extracted from the databases at various times following a relevant order from the resigned General Secretary of the Ministry, either in written or oral form, without specifying the exact purpose, a conclusion that arises both from the responses of the Ministry's officials during the on-site inspection and from the email message included in the document with reference number Γ/ΕΙΣ/3549/16-04-2024 from the Ministry.

ζ) There was the possibility of mass export of all data from the electoral rolls abroad, without recording and without any limitation or specification of when, who, and for what purpose it could be requested. The .xls files were produced and circulated internally within the Ministry either due to service needs or following a request from the resigned General Secretary of the Ministry. A similar internal circulation of such files had also occurred in the past. Therefore, it cannot be ruled out that electoral rolls may have been transmitted in the past, or even more recently, via email to recipients outside the Ministry,

although it is not possible to search for information to document such a leak. This issue has existed since the time the special electoral rolls for voters abroad were created. According to what is stated by the Secretary of Expatriates of New Democracy and was not disputed during the hearing process or in the submissions, it is likely that some relevant data had been transmitted.

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communication to the Secretariat of Overseas Greeks of the New Democracy party, directly or indirectly, for a specific purpose and for a limited scope, that of facilitating the registration of expatriates in the electoral rolls abroad, as particularly mentioned in the case of voters who were in Lithuania on May 21, 2023, to attend an important basketball match.

h) Regarding the method of recording accesses for the extraction of mass data from the OSYED, the database and application log files do not maintain information about user actions but exclusively for the entry and exit from the system. This information is not particularly useful as a user may utilize the system for multiple different reasons. Significant events are also recorded based on the default settings of the software (SQLserver) as well as failed login attempts. However, the maintained log files do not include the actions of each user in the database, so it cannot be retrospectively determined who and when executed a query in the database. The security study (in the document No.

Γ/ΕΙΣ/3286/09-04-2024 from the Ministry) indicates that audit trails could have been activated in the OSYED (an audit trail is a documented record that logs the users of a computer system and the actions they have performed over a given time period).

i) The security study of the contractor of the OSYED submitted with the document No.

Γ/ΕΙΣ/3286/09-04-2024 from the Ministry includes and proposes procedures on which the Security Policy and Security Plan of the OSYED Authority (i.e., the Ministry of Interior) will be based and does not constitute the approved Security Policy and Security Plan of the authority from which the documentation of the implementation of the proposals of the Study arises.

j) In the contract for the provision of services for the development of an Integrated Election Process Support System submitted with the document No. Γ/ΕΙΣ/3287/09-04-2024, in the chapter "1.3 Subsystem for the Ministry of Interior," it is included as a requested function of the subsystem the personal notification of the citizen via electronic message, for the exact location of exercising their electoral right at least 7 days before the elections. The implementation of this process is stated to be carried out through a communication and information mechanism for the interested voters and entities via electronic messages. It was found that no mechanism had been implemented in the application through which the functionality of informing expatriate voters could be supported without the need for mass export of files.

k) Regarding the management of the breach incident: On 18-03-2024, the Authority received the document No. Γ/ΕΙΣ/2484/18-3-2024 Notification of Personal Data Breach from the Ministry of Interior, with the following details: The start and end time of the incident is stated to be under investigation and is approximately May 2023. The time the authority became aware of the incident is stated as 15/3/2024, 14:00, and the way it became aware of the incident is through the media. The type of data mentioned included the full name and email address. It was also noted that an investigation is ongoing by the internal audit service of the Ministry, that the number of subjects is unknown (only a maximum of 26,905 can be considered, as mentioned in the lists submitted by the Ministry to the Authority with the document No. Γ/ΕΙΣ/2445/15-03-2024) and that the data subjects have not yet been informed, as the internal investigation has not been completed.

l) Referring to the case in question, in an interview on 16/3/2024, the Minister of Interior explained that the leak "occurred during the period between the two electoral contests of the parliamentary elections held in May and June 2023, when the Ministry of Interior was under caretaker leadership. During this period, an associate of the then responsible for the elections, General Secretary Michalis Stavrianoudakis, exported email addresses of expatriates to the Secretary of Overseas Hellenism of New Democracy, Nikos Theodoropoulos. He then forwarded them to Ms. Asimakopoulou."

m) It also does not appear that the Ministry of Interior conducted an exhaustive investigation and search for information in order to facilitate the identification of the time and subject of the illegal transmission of electoral roll data. During the Authority's inquiries during on-site inspections, no

relevant information was provided nor was an authorized legal representative of the Ministry present. Therefore, there is no evidence that substantiates the fact and time of the data leak from the Ministry to the Secretary of Overseas Greeks of New Democracy or any other recipient outside the Ministry. The order for

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The internal audit concerned the adequacy of security and data protection measures, without referring to the identification of the specific incident, the circumstances, and the manner of the leak. Furthermore, no substantial investigation was conducted by the Ministry, nor was there a technical inquiry regarding the leak, while it was clear that the incident notification submitted was in its initial stage and lacked a series of elements, for which at no stage after the submission of the notification did the Ministry prove that it undertook investigative actions to complete the notification.

iv) The activity records concerning the OSYED system were submitted (ref. no. G/EIS/3285/09-04-2024). The records mention the Ministry's employees as executors, while the processing contractor company, which was indeed mentioned in the submitted incident notification of data breach, is not included. There is also insufficient reference to security measures, the duration of data retention is not specified, and there is a reference to general legislation rather than a specific reference to the electoral legislation.

A. From the above points a), b), c), it follows that a record containing personal data of all registered voters abroad for the June 2023 elections, for which the Ministry of Interior is responsible for processing, and for which the applicable legislation does not provide for any case of transmission outside the Ministry, was circulated outside the Ministry. Although it was not possible to ascertain how this transmission occurred, this fact undoubtedly constitutes an incident of breach of confidentiality of personal data and thus a breach of personal data, according to the definition of Article 4, paragraph 12 of the GDPR, as it is certain that the existing measures were violated and there was unauthorized disclosure of personal data that was transmitted, which was subsequently subjected to further processing.

B. From the above points d) to g), it follows that the policies and procedures followed by the Ministry for the mass export and internal circulation of data of voters abroad did not contain specific provisions (specific security measures during the circulation of the records) and restrictions (regarding the recipients of the records), nor provisions for the recording and documentation of actions as well as the approval of the purpose of export. Furthermore, the designed procedures do not include any measures to mitigate risks caused by the human factor (which, according to the Ministry, proved to be decisive and critical). It should be noted that the risk from the human factor is referred to by the authorities' data as a key factor causing incidents of personal data breaches, and it had been specifically highlighted by the Authority since 2018. It also emerged that the implemented measures were not reassessed for the specific needs of processing the lists of voters abroad.

C. From the above points h) to i), deficiencies are identified in the procedures and policies for the protection of data (as mentioned in the context of accountability in Article 24 of the GDPR), meaning that the data controller did not effectively implement appropriate technical measures for recording user actions and organizational measures for the application of data protection principles at the time of determining the means of processing, as provided in Article 25, paragraph 1 for data protection by design.

D. From the above points j), k), l), it follows that the submitted Notification of Personal Data Breach does not include information that was publicly announced and had been mentioned in an interview by the Minister prior to the submission of the notification, while it is not included in the submitted Notification of Personal Data Breach, even though it had been mentioned in an interview by the Minister prior to the submission of the notification. With this handling of the incident, the obligations of Article 33, paragraphs 3, 4, and 5 of the GDPR regarding the notification of personal data breaches to the supervisory authority were not fulfilled.

E. From the above point m), deficiencies and inaccuracies are observed in the content of the

maintained activity records concerning the OSYED system, as required by Article 30 of the GDPR.

Therefore, it follows that the Ministry of Interior violated i. Articles 5, paragraph 1, subparagraph f and Article 32 of the GDPR, as analyzed in the above points A and B, ii. Article 25.1 of the GDPR, as analyzed in point C, iii. Articles 33, paragraphs 3, 4, and 5 of the GDPR, as analyzed in point D, and iv. Article 30 of the GDPR as analyzed in point E.

Based on the above, the Authority considers that there is a case to exercise its corrective powers under Article 58, paragraph 2 of the GDPR concerning the identified violations and that, based on the circumstances identified, a penalty should be imposed, according to the provisions of the GDPR.

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Application of the provision of Article 58(2)(h) of the GDPR, an effective, proportionate, and deterrent administrative monetary fine pursuant to Article 83 of the GDPR, both for the restoration of compliance and for the punishment of unlawful behavior. Furthermore, the Authority took into account the criteria for the assessment of the fine as defined in Article 39(2) of Law 4624/2019 applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for the calculation of administrative fines within the framework of the General Regulation, as well as the factual data of the examined case, based on which the severity of the violation is deemed significant, and taking into account in particular:

- o that the nature of the violations concerns the obligations of accountability and the adoption of technical measures for recording user actions and organizational measures of the data controller,
- o the processing concerns the main activities of the data controller responsible for organizing and conducting the electoral process, which must not be called into question nor should the trust of citizens in it be undermined,
- o the violations do not directly result in serious consequences for the data subjects,
- o that the transmission of the specific file was a singular action, but in relation to the applicable policies and technical measures for recording user actions, the violations concern the processing of personal data included in the electoral rolls,
- o the violation concerning the policies and the applicable security measures (Articles 25 and 32) spans a long period, namely at least from the delivery of the studies of the OSYED system,
- o the large number of subjects that were certainly affected by the violation (25,610) and which indeed constitutes the total number of registered voters abroad,

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- o The categories of personal data that the processing concerns do not involve a high risk (Articles 9-10 GDPR, communications, location, financial data, etc.)
- o the disturbance and anxiety caused to the subjects regarding the leakage and illegal use of their personal data, as well as the consequences on their sense of trust in the State for the safeguarding of their personal data, as evidenced by the number and content of the complaints submitted to the Authority,
- o The fact that the violation was caused by the negligence of the data controller, who breached the duty of care without intent.
- o The fact that the Ministry, even after the incident, but before the hearing at the Authority, took specific measures in the right direction, such as the implementation of expertise and actions for the mandatory training of its staff.

3. Regarding the New Democracy party and Mr. Theodoropoulos, the Authority defers the issuance of a decision, given that the latter, after the hearing and the submission of briefs, provided a sworn statement as a new element, which may be taken into account by the Authority within the framework of the ex officio inspection and from the content of which the need for further investigation of the claims made therein arises.

III. DISPOSITIVE

FOR THESE REASONS

THE AUTHORITY

A. For the violations of Articles 5(1)(a) in conjunction with Article 6(1) and Article 14 of the GDPR, as analyzed in Chapter B1 of the reasoning of this decision, i) imposes pursuant to Article 58(2)(h) GDPR on Anna Michelle Asimakopoulou, as data controller, a monetary fine of forty thousand (40,000) euros, and ii) orders, pursuant to Article 58(2)(g) of the GDPR, Anna Michelle Asimakopoulou, as data controller, to delete all data of the overseas voters.

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B. For the violations of Articles 5(1)(f) and 32 of the GDPR, Article 25(1), and Article 33(3), (4), (5) of the GDPR, as well as Article 30 of the GDPR, as analyzed in Chapter B4 of the reasoning of this document, i) imposes pursuant to Article 58(2)(h) of the GDPR on the Ministry of Interior, as the data controller, a monetary fine of four hundred thousand (400,000) euros, and ii) orders, pursuant to Article 58(2)(d) of the GDPR, the Ministry of Interior, as the data controller, to take the following actions:

In light of this incident, the Ministry must document in approved policies, review and revise the procedures and measures it implements regarding the protection of personal data during the processing of personal data of voters, including those data retained in the OSYED system as well as in any other related system. The above actions must ensure compliance with the principles of Article 5(1) of the GDPR, particularly confidentiality throughout the election process, and provide for a procedure for periodic evaluation of the measures.

The Ministry must, within three months from the notification of this decision, prepare a relevant timeline, which will specify the procedures for the preparation, implementation, supervision, and updating of the above, as well as the timeframe for their execution, promptly notify the Authority of the timeline, and update it quarterly on its implementation.

As specific measures for the prevention, detection, and investigation of personal data breach incidents, the following must be provided and implemented without delay:

1. Systematic analysis of the institutional framework for conducting elections, identification of the procedures that require the processing of personal data, documentation for each procedure of the flows of personal data and the recipients of each type of data.

As part of the analysis, the possibility of actions being executed on datasets by natural persons (e.g., employees) should be minimized to only what is absolutely necessary. Repetitive processes should be carried out with minimal human intervention and without data extraction. Specifically, it is proposed:

a) All functions requiring mass processing of voters' personal data, especially contact data, should be integrated into applications, so that lawful processing occurs within the application environment (e.g., sending informational messages to voters), with full documentation of actions.

b) The possibility of using DLP software should be examined, especially for the Ministry units involved in file exports.

c) Prohibition of the transmission via email or other internal communication methods of files containing voters' personal data. Exceptionally, if truly necessary, such transmission may only occur in encrypted form. Each message must state the purpose of processing and the purpose of transmission, as well as indicate the retention period of the file. The code must be communicated through a different medium. This transmission must be approved by a competent senior official, and the relevant approval must be kept on file (audit trail) for a sufficient period.

d) Review of the process for logging actions of the type of queries (SELECT) in the OSYED database tables or in other systems that process personal data and take measures for the automated, proactive, control of the log files.

2. Security Policy and Security Plan – other organizational measures

Given that no approved security policy (or individual security plans) was submitted to the Authority, the Ministry must update the Security Policy it applies and the accompanying individual security plans concerning the processing of voters' personal data so that:

a) The systems for managing voters' data are included, and it is decided which of the proposed rules

will be implemented (or it is recorded which have been implemented).

b) Appropriate provisions are included for updating contracts with processors regarding the changes that will arise.

c) Documentation, review, and updating of the procedure for handling personal data breach incidents, with emphasis on the content of the notification to the Authority, the informing of data subjects, and the appropriate procedures and bodies for internal investigation.

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d) Regular checks by an independent organization or body, at least annually, of the security of systems and procedures, including the assessment of the security measures applied.

e) Periodic checks by the Ministry, at least annually, of any processors regarding the adoption of appropriate security measures.

3. Measures for informing and raising awareness among staff

A program of awareness and training actions should be designed for both leadership and staff at all levels of the Ministry regarding personal data protection issues, and specifically regarding the obligations of the data controller, the manner of cooperation with the Authority, and the role of the DPO. The actions of the program should include activities that keep the Ministry's staff alert.

C. Defers the issuance of a decision regarding New Democracy and Nikos Theodoropoulos, as mentioned above.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou